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7/26/25, 10:13 AM

Innovision Ltd. Mail - Show Cause Notice for Debarment for 1 Year for Fraudulent Practices observed by STF of UP at the Toll Pla...



Shyam B Singh <shyam.singh@innovision.co.in>

Show Cause Notice for Debarment for 1 Year for Fraudulent Practices observed by STF of UP at the Toll Plaza. (WITHOUT PREJUDICE) reg.

Garg Mudit, GM(T) <gargmudit@nhai.org>

25 January 2025 at 17:06

To: "info@innovision.co.in" <info@innovision.co.in>, "shyam.singh@innovision.co.in" <shyam.singh@innovision.co.in>

Cc: "Bhalla Sanjeev Kumar, PPS to Chairman" <sanjeevkumarbhalla@nhai.org>, "Kapoor Anil, Sr.PPS" <anilkapoor@nhai.org>, "Basit Abdul, i/c CGM (CO)" <abdulbasit@nhai.org>, RO Kolkatta <rokkolkatta@nhai.org>

PI find the attachment of Show Cause Notice.

Thanks & With Regards

मुदित गर्ग / MUDIT GARG

महाप्रबंधक (सीओ डिविजन)

GENERAL MANAGER (CO-DIVISION)



भारतीय राष्ट्रीय राजमार्ग प्राधिकरण

National Highways Authority of India

सड़क परिवहन और राजमार्ग मंत्रालय

Ministry of Road Transport and Highways

जी-5 एवम् 6, सेक्टर-10, द्वारका, नई दिल्ली - ११००७५

G-5 & 6, Sector-10, Dwarka, New Delhi-110075

Tel No. +91-11-25074100, 25074200 Extn. No. 1555, Mobile: 9910845730

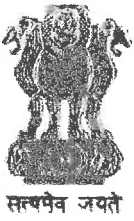


Save a tree.....Please don't print this e-mail unless you really need to



SCN Toll Agencies 25.01.25 - Innovision Ltd.pdf

328K



भारतीय राष्ट्रीय राजमार्ग प्राधिकरण

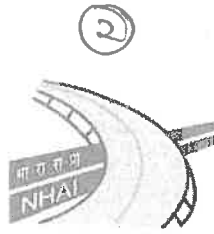
(सड़क परिवहन और राजमार्ग मंत्रालय, भारत सरकार)

National Highways Authority of India

(Ministry of Road Transport and Highways, Government of India)

जी-5 एवं 6, सेक्टर-10, द्वारका, नई दिल्ली - 110 075 • G-5 & 6, Sector-10, Dwarka, New Delhi-110075

दूरभाष/Phone : 91-11-25074100 / 25074200



No. NHAI/13013/CO/2024/E- 272743

Date: 25.01.2025

To,

M/s Innovision Ltd

Email: shyam.singh@innovision.co.in and info@innovision.co.in

Sub: Show Cause Notice for Debarment for 1 Year for Fraudulent Practices observed by STF of UP at the Toll Plaza. (WITHOUT PREJUDICE)

You may be aware that UP STF has conducted an investigation and based on that an FIR no. 0017 has been filed on 22/01/2025 in P.S. Lalganj, Distt. Mirzapur, UP, by them including arrest of few persons involved in using parallel software and causing financial loss to the Govt. at the Toll Plaza(s) operated by you/your Firm (Toll Plaza List attached as Annex-A).

2. Your attention is invited to Clause 21 of Contract Agreement;

"Operational Transparency: which mandates that all transactions including cash, violations, and exemptions/ concessions will be processed through ETC system available at the fee plaza. Usage of electronic ticketing machine or any such devices like handheld Point-of-Sale (POS) terminal, POS Billing machine etc. is strictly prohibited for user fee collection at NH fee plazas. Furthermore, the deployment of usage of any alternate software/system for user fee collection at NH fee plaza, except for the TMS through which FASTag transactions are processed, is also strictly prohibited. Any instance of usage of such handheld devices or unauthorized software/system shall be treated as Fraudulent Activity and any User Fee collection agencies (ies), including the Director(s) of such entities or owner, found practicing such fraudulent activities at NH fee plazas will attract penal action as per clause 20 of the Contract Agreement including debarment from NHAI for a period up to (1) year."

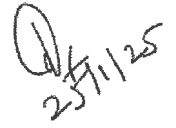
3. Further, as per the Policy Circular dated 24.01.2024, in case of non-compliance of obligations of operational transparency as mentioned above;

"The Authority shall levy a penalty @ Rs 10,00,000/- per instance or termination of Contract Agreement or both, without prejudice to any other rights of the Authority under the Contract. The date of default will be the date of reporting to the Contractor by the Project Director or any other Authorized Representative of the Authority. In addition to the levy of penalty as above, more than three defaults in a month under this clause may attract termination under clause 35(2) of this Contract. The decision of the Project Director or any other Authorized Representative of the Authority to levy the penalty under this clause shall be final and binding. The penalty so levied shall be recovered from the performance guarantee which shall be replenished by the Contractor within 10 days from the date of such recovery failing which the Contract is liable to be terminated."

4. In view of the violation of Clause 21(i), this Show Cause Notice is being issued to you/your Firm that why you/ your Firm should not be debarred from NHAI for a period of 1 year.
5. Your reply should reach this office within 7 days of issuance of this letter otherwise it will be presumed that you have nothing to say in the matter and action as deemed fit will be taken against You/Your firm without any further Notice.
6. This is without prejudice to any other Rights and remedies available to the Authority.

This is issued with the approval of Competent Authority.

Enclosure: Annex-A


25/1/25

(Mudit Garg)
General Manager (CO)

Copy for kind information to:-

1. PPS to Chairman, NHAI, New Delhi
2. PPS to Member (Admin), NHAI HQ, N Delhi.,
3. I/C. CGM (CO), NHAI HQ, New Delhi.
4. RO- Kolkata: for information and necessary action in the matter.
5. PIU- Jalpaiguri: for information and necessary action in the matter.

Innovision Ltd

#	Plaza Code	Plaza Name	Agency	SI Name	IHMCL Plaza (Yes/No)	Concessionaire Type	Plaza Type	Plaza Sub Type	City	State	Concessionaire Name	Bank ID	Bank Name
1	370014	Paschim Madati	Innovision Ltd	VRS	Yes	PF	TOLL	NATIONAL	Darjeeling	West Bengal	NHAI	ATBZ	Airtel Payi

b(5-23)

5

7/26/25, 9:47 AM

Innovision Ltd. Mail - FW: Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudu...



Shyam B Singh <shyam.singh@innovision.co.in>

FW: Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudulent practices observed at the Paschim Madati FP, Sabli FP.

Garg Mudit, GM(T) <gargmudit@nhai.org>

24 June 2025 at 12:07

To: "shyam.singh@innovision.co.in" <shyam.singh@innovision.co.in>

From: Garg Mudit, GM(T)

Sent: 24 June 2025 09:59

To: 'Info@innovision.co.in' <Info@innovision.co.in>

Subject: FW: Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudulent practices observed at the Paschim Madati FP, Sabli FP.

From: Garg Mudit, GM(T)

Sent: 23 June 2025 18:35

To: 'Info@innovision.co.in' <Info@innovision.co.in>

Cc: 'memberadmin@nhai.org' <memberadmin@nhai.org>; RO Kolkatta <rokkolkatta@nhai.org>; RO-WestUP <rowestup@nhai.org>; PIU Siliguri <sil@nhai.org>; PIU Bareilly <bareilly@nhai.org>; PIU Katni <katni@nhai.org>; Sharma Nitin, DGM (Tech) <nitinsharma@nhai.org>

Subject: Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudulent practices observed at the Paschim Madati FP, Sabli FP.

Kindly ignore earlier email on above subject.

Kindly read personal hearing date 26.06.2025.

3 attachments



SCN 170 Innovison.pdf

2432K



FIR Report.pdf

333K



Annexure-A Press Note36.pdf

2220K



भारतीय राष्ट्रीय राजमार्ग प्राधिकरण

(सड़क परिवहन और राजमार्ग विभाग, भारत सरकार)

National Highways Authority of India

(Ministry of Road Transport and Highways, Government of India)

जी-1 एड ब्लॉक, सेक्टर-10, डाकघर, नई दिल्ली - 110 075 • C-5 & 6, Sector-10, Connaught Place, New Delhi - 110028
दूरभाष/Phone: 01-11-25074100 / 25074200



No. NHAI/CODIV-11036/2/2025-CO Division/E-273915/170

Date: 23.06.2025

To,

Authorised Representative,
M/s. Innovision Ltd.
Plot No. 251, 1st Floor,
Udyog Vihar Phase-4,
Gurgaon - 122015 (Haryana)
Email: info@innovision.co.in

Sub:- Show Cause Notice for Debarment for a period of 1 year and Encashment of Bank Guarantee for fraudulent Practices observed at-

- Paschim Madati Fee Plaza at km 547.350 for use of Dalkhola-Islampur Bypass-Ghoshpukur Section (from design Kilometer 0.000 to design kilometer 10.360 of Islampur Bypass and existing kilometer 506.950 to kilometer 551.000 of National Highway 31) in the state of West Bengal.**
- Sabli in Shahjahanpur Distt. Fee Plaza at design/existing km. 61.500 for the section from Design Km. 51.000 to km 105.500 (existing Km.50.675 to Km.105.500) (Pawayan-Puranpur (2 lane with PS) of NH-730A, in the state of Uttar Pradesh.**

Ref.

- LOA dated 21.12.2023 for Paschim Madati Toll Plaza & LOA dated 05.09.2024 for Sabli Toll Plaza.
- Contract Agreement dated 01.01.2024 Paschim Madati Toll Plaza and Agreement dated 11.09.2024 for Sabli Toll Plaza.
- Show Cause Notice letter no. CODIV-13013/CO/2024/E-272743 dated 25.01.2025
- Contractor reply to 'Show Cause Notice' letter dated 29.01.2025
- FIR bearing No. 0017/2025 dated 22.01.2025
- Press Note No. 36 by STF, UP dated 22.01.2025

This has reference to the award of the subject plazas to the toll collection agency/user fee collection agency - M/s. Innovision Ltd., vide LOA dated 21.12.2023 for Paschim Madati Toll Plazas & LOA dated 05.09.2024 for Sabli Toll Plaza. In this regard, the Contract Agreement dated 01.01.2024 for Paschim Madati Toll Plazas & Agreement dated 11.09.2024 for Sabli Toll Plaza ("Contract Agreements") were executed between the National Highways Authority of India ("NHAI" or "Authority") and M/s. Innovision Ltd. ("Contractor").

2. As a result, the Contractor was appointed as the user fee collection agency for the collection of user fees for the above-mentioned toll plazas for collection of User Fees and upkeep/maintenance of adjacent Toilet blocks including recouping the consumable items.

3. As an agency appointed by the Authority to collect user fees from the users of the Project highway, the Contractor is expected to act with utmost integrity and honesty. However, it is disheartening to note that the Contractor has indulged into the fraudulent practices, which has caused detriment to the public money and interest of the Authority. The concerned factual details are given below:

- a. It has been brought to the Authority's attention that the UP Special Task Force (STF) conducted a raid on 21.01.2025 at "Shivgulam Toll Plaza, Atraula, PS - Lalganj, District - Mirzapur" and arrested 3 members of a gang, which were reportedly involved in causing loss of national revenue by embezzling Toll Fee by committing fraud using POS machine from vehicles without Fast Tag or invalid Fast Tag at various Toll Plazas of the NHAI. In this connection, an FIR bearing No. 017/2025 dated 22.01.2025 cited under ref. (5) has been accordingly registered and the contents of the same are self-explanatory. The Press Note No. 36 (cited at ref. 6) issued by the UP-STF.
- b. That, in this connection the Authority has obtained the Cash Collection Report through M/s. IHMCL for the period immediately before and after the date of the raid, i.e. 22.01.2025.

That the Cash Collection Report (Toll wise) is as follows-

S. No.	Toll Plaza Name/PIURO	User Fee Agency Name	Pre-Incident cash collection (14.01.2025-22.01.2025)	Post Incident cash collection			% Increase in Cash Collection post Incident		
				(23.01.2025-31.01.2025)	(01.02.2025-07.02.2025)	(08.02.2025-14.02.2025)	(23.01.2025-31.01.2025)	(01.02.2025-07.02.2025)	(08.02.2025-14.02.2025)
1	Paschim Madati Toll Plaza	M/s. Innovision Ltd.	19,010	47,170	56,520	53,560	148%	197%	182%
2	Sakra Toll Plaza		5940	15,260	23,870	32,080	157%	302%	440%

- c. That the figures, which have come in the Cash Collection Report, are alarming and are self-sufficient to show the fraudulent practices run by the Contractor. The sudden surge in cash collection, as reflected in the said Report, shows that post-raid by STF on 22.01.2025, course correction was undertaken by the Contractor due to increased monitoring. The figures for cash collection also show that a parallel POS Machine was used by the Contractor for cash collection in violation of Clause 21(i) of the Contract Agreement, and the Cash collection seemed to have been stopped by the Contractor or its authorized representative by using the POS Machine once the raid was conducted. The Contractor was alerted and immediately abandoned the further usage of the said PoS Machine, leading to an increase in the cash collection.
- d. It is to be highlighted that the raid conducted by UP STF on 22.01.2025, the statement made by the arrested accused Alok Kumar Singh about installing a POS Machine at the Toll Plaza operated by the Contractor, the Cash Collection Report showing the data pre and post raid on 22.01.2025 cannot be seen in isolation and are connected events. A collective reading of such evidence shows the Contractor's involvement in a very serious economic crime of embezzlement and collecting user fees through unauthorized software/system and thus committing fraudulent activities in gross breach of the terms of the Contract Agreement and Circular governing the contractual relationship between the Authority and the Contractor.
- e. That, considering the above facts and circumstances, the Contractor was immediately put to notice vide Show Cause Notice dated 25.01.2025 for Paschim Madati Toll Plaza. That the Contractor replied to the same vide letter dated 31.01.2025, however, the contents of the said reply contain incorrect and misleading averments. It is pertinent to highlight that as per the FIR bearing No. 0017/2025 dated 22.01.2025 (cited under ref. 5) and the Press Note No. 36 (cited at ref. 6) released by the UP-STF, the arrested accused, Alok Kumar Singh installed a POS Machine at the Toll Plaza operated by the Contractor. This act reflects a serious lapse in Operational Transparency on the part of the Contractor, as all transactions, including those related to cash

- payments, violations, exemptions, and concessions, are required to be processed only through the ETC system available at the fee plaza.
- f. That on finding the Contractor's letter in response to the Show Cause Notice(s) unsatisfactory, vide order bearing No. COBIV-11036/2/2025-CO Division/Debar/06 dated 18.03.2025 for Paschim Madati Toll plazas, action was taken against the Contractor as per the terms of the Contract Agreement, and including termination of the Contract Agreement dated 01.01.2024 and debarment for a period of 2 years.
 - g. That the said impugned order dated 18.03.2025 was challenged before the Hon'ble High Court at Delhi by the Contractor. That the Hon'ble High Court vide order dated 24.03.2025 in W.P. (Civil) No. 3642/2025 and CM APPLs. 17012/2025, 17013/2025 granted liberty to the Authority to issue a fresh Show Cause Notice.
4. Considering the aforesaid facts and circumstances, the Contractor's attention is being invited to the relevant provisions of the Contract Agreement:
- a. That as per Clause 13(a) of the Contract Agreement, the Contractor shall ensure that the personnel deployed by it for discharging its duties under this contract are of good health, of highest integrity, punctual, well dressed, well-behaved and of qualification & experience prescribed in Schedule-III of Contract Agreement. (Emphasis supplied)
 - b. That as per Clause 13(b) of the Contract agreement, the Contractor shall furnish to the Authority a list, in addition to the list of key personnel, of persons deployed for the purpose of discharging its obligations under the Contract, containing all the details like their educational qualifications, experience, training undergone, good health, good character, personal residential address and recent photographs. The required details of Key personnel shall be submitted to the concerned Regional Office and that of other staff to Project Director after signing of the contract in the format given in Schedule-IV of this contract. (Emphasis supplied)
 - c. That as per Clause 17(c) of the Contract agreement, the Contractor undertakes that in case of any default on its part to perform and observe any of the covenants, conditions or provisions contained in the Contract, it shall be lawful for the Authority in its absolute discretion to forfeit the whole or any part of the said performance security without prejudice to any other remedy that the Authority may have against the contractor under this contract or under general law for such breach.
 - d. That as per Clause 20 of the Contract agreement, in case of non-compliance of any of the obligations specified in Clause 23(a) to (i), the Authority shall levy penalty @1.0 Lakh per default per month except for Clause 23(e) for which the penalty shall be @ Rs. 10,000/- per default per month, without prejudice to any other rights of the Authority under this contract. However, in case of non-compliance of obligation specified in Clause 23 (h), the Authority shall levy a penalty@ Rs. 10,00,000/-per instance or termination of contract agreement or both, without prejudice to any other rights of the Authority under this contract. The date of default will be the date of reporting to the contractor by the Authority concerned or his authorized representative. In addition to levy of penalty as above, more than three defaults in a month under this clause may attract termination under clause 35(2) of the contract. Before levy of penalty under this clause the contractor shall be given a reasonable opportunity to rectify the default. The decision of the Authority concerned or his authorized representative to levy the penalty under this clause shall be final and binding. The penalty so levied shall be recovered from the performance guarantee

- which shall be replenished by the contractor within 10 days from the date of such recovery failing which the contract is liable to be terminated.
- e. That as per Clause 21 of the Contract agreement, "Operational Transparency" which mandates that all transactions including cash, violations and exemptions/concession will be processed through ETC System available at fee plaza. Usage of electronic ticketing machine or any such devices like handheld Point of Sale (POS) terminal, POS Plazas. Furthermore, the deployment of usage of any alternate software/system for user fee collection at NH fee plaza, except for the TMS through which FASTag transactions are processed, is also strictly prohibited. Any instance of usage of such handheld devices or authorized software/system shall be treated as Fraudulent Activity and any User Fee Collection agency (ies), including the Director(s) of such entities or owner, found practicing such fraudulent activities at NH fee plazas will attract penal action as per Clause 20 of the contract agreement including debarment from NHAI for a period up to one (1) year.
 - f. That as per Clause 23(f) of the Contract agreement, "the contractor also agree to abide by the requirement of Clause 21 in order to maintain operational transparency at the fee plaza.
 - g. That as per Clause 23(g) of the Contract agreement, "the contractor also agree to abide by the requirement of Clause 12 & Clause 13 specifically on deployment of the personnel for the purpose of this contract.
 - h. That as per Clause 35(3) of the Contract agreement, the Authority may terminate the Contract forthwith for breach or non-observance of any of the terms and conditions of the contractor or for any misconduct on the part of Contractor or his employee/staff/personnel or for overcharging of User Fee from a User, or for harassment of any User.
 - i. Further, as per the NHAI Policy Circular No. 17.5.87/2024 dated 25.01.2024, in case of non-compliance of obligations of operational transparency as mentioned above:

"The Authority shall levy a penalty @ Rs. 10,00,000/- per instance or termination of Contract Agreement or both, without prejudice to any other rights of the Authority under the Contract. The date of default will be the date of reporting to the Contractor by the Project Director or any other Authorized Representative of the Authority. In addition to the levy of penalty as above, more than three defaults in a month under this clause may attract termination under clause 35(2) of this Contract. The decision of the Project Director or any other Authorized Representative of the Authority to levy the penalty under this clause shall be final and binding. The penalty so levied shall be recovered from the performance guarantee which shall be replenished by the Contractor within 10 days from the date of such recovery failing which the Contract is liable to be terminated."

5. That, accordingly, as the Contractor involvement has surfaced in the criminal investigation by the UP STF in the confession/statement given by the arrested accused Alok Kumar Singh to the said Investigating agency and the Cash Collection Report reflects a huge surge in cash collection post the date of the raid i.e. 22.01.2025, the present "Show Cause Notice" is being issued to the Contractor to explain and show cause as to the allegations referred against the Contractor under the said confession/statement as mentioned in FIR and the figures mentioned in the Cash Collection Report.

6. That in terms of the facts and circumstances, it is established that the Contractor has committed defaults under Clauses 21(i) & (v) & Clause 23(f) of the

Contract Agreement thereby warranting action/s envisaged under Clauses 21(i) read Clause 20 and Clause 35(3) for the fraudulent activities of the Contractor intended to cause a significant loss to the Authority.

7. That in view of the violation of multiple clauses of the Contract referred above, and Circular governing the contractual relationship between the Authority and the Contractor, the confession/statement given by the arrested accused Alok Kumar Singh to the investigating agency UP - STF and the Cash Collection Report reflecting a huge surge in cash collection post the date of the raid i.e. 22.01.2025, this Show Cause Notice is being issued to the Contractor (including directors/owners) to show as to why it should not be debarred from NHAI for a period of 1 year.

8. That in view of the violation of multiple clauses of the Contract referred above, and Circular governing the contractual relationship between the Authority and the Contractor, the confession/statement given by the arrested accused Alok Kumar Singh to the investigating agency UP - STF and the Cash Collection Report reflecting a huge surge in cash collection post the date of the raid i.e. 22.01.2025, this Show Cause Notice is being issued to the Contractor to show as to why the Contract dated 11.09.2024 of Sabli fee plaza should not be terminated in obedience to Clause 35 of the Contract.

9. That in view of the violation of multiple clauses of the Contract Agreement referred above, and Circular governing the contractual relationship between the Authority and the Contractor, the confession/statement given by the arrested accused Alok Kumar Singh to the investigating agency UP - STF and the Cash Collection Report reflecting a huge surge in cash collection post the date of the raid i.e. 22.01.2025, this Show Cause Notice is being issued to the Contractor to show as to why a penalty of INR [Rs. 10,00,000/-] be not imposed upon the Contractor in obedience to Clause 20 of the Contract and NHAI Circular No. 17.5.87/2024 dated 25.01.2024.

10. That in view of the violation of multiple clauses of the Contract Agreement referred above and Circular governing the contractual relationship between the Authority and the Contractor, the confession/statement given by the arrested accused Alok Kumar Singh to the investigating agency UP - STF and the Cash Collection Report reflecting a huge surge in cash collection post the date of the raid i.e. 22.01.2025, this Show Cause Notice is being issued to the Contractor to show as to why the Performance Security (Cash+Bank Guarantee) for the subject fee plaza should not be encashed.

11. That in view of the violation of multiple clauses of the Contract referred above and Circular governing the contractual relationship between the Authority and the Contractor, the confession/statement given by the arrested accused Alok Kumar Singh to the investigating agency UP - STF and the Cash Collection Report reflecting a huge surge in cash collection post the date of the raid i.e. 22.01.2025, this Show Cause Notice is being issued to the Contractor to show as to why an appropriate criminal proceedings be not initiated against the Contractor.

12. That the Contractor are put to strict notice that the reply to the present Show Cause Notice should reach this office within 15 (fifteen) days of issuance of this letter. In case of failure on the part of the Contractor to submit the explanation on the observations brought hereinabove, it will be presumed that the Contractor has no explanation to offer and all the contentions herein are unconditionally



(10)

acknowledged and admitted by it and NHAI shall be entitled to take further actions/proceedings without any further notice to the Contractor.

13. That the Contractor is required to send your reply along with supporting documents/materials, if any, following the principles of natural justice so as to afford you an opportunity to explain to the present Show Cause Notice.

14. That, in view of the procedural fairness, the Contractor is given an opportunity of personal hearing which will be fixed on 25.06.2025, at 11.00 AM. The Contractor may authorize not more than 2 (two) of its competent and authorized representatives, with full knowledge of the facts of the matter to come personally to Member (Admn.) and explain the allegations in person.

15. This Show Cause Notice is issued without prejudice to NHAI's other rights and remedies, available now or in the future against the Contractor, under the Contract Agreement and/or applicable laws, as the case may be.

16. This is issued with the approval of Competent Authority.

23/6/26
(Mudit Garg)
General Manager (CO)

Copy for kind information to: -

- i. PS to Member (A), NHAI, HQ.
- ii. RO- Kolkata, WB, NHAI.
- iii. RO-UP West, UP, NHAI
- iv. PD PIU- Jalpaiguri, NHAI.
- v. PD PIU- Bareilly, NHAI.
- vi. PD PIU-Katni, NHAI.

स्पेशल टास्क फोर्स, उत्तर प्रदेश, लखनऊ।

प्रेस नोट संख्या: 36, दिनांक 22-01-2025

राष्ट्रीय राजमार्ग प्राधिकरण के कई राज्यों के विभिन्न टोल प्लाजा पर फास्ट टैग रहित वाहनों से अतिरिक्त सड़क/समानान्तर साफ्टवेयर के माध्यम से धोखाधड़ी करके लगभग करोड़ों रुपये का टोल टैक्स गबन कर राष्ट्रीय राजस्व क्षति पहुंचाने वाले गैंग के 03 सदस्य गिरफ्तार।

दिनांक 21-01-2025 को एसटी0एफ0, उ0प्र0 को राष्ट्रीय राजमार्ग प्राधिकरण के कई राज्यों के विभिन्न टोल प्लाजा पर फास्ट टैग रहित वाहनों से समानान्तर साफ्टवेयर के माध्यम से धोखाधड़ी करके लगभग करोड़ों रुपये का टोल टैक्स का गबन कर राष्ट्रीय राजस्व की क्षति पहुंचाने वाले गैंग के 03 सदस्यों को गिरफ्तार करने में उल्लेखनीय सफलता प्राप्त हुई।

गिरफ्तार अभियुक्तों का विवरण:-

- 1- आलोक कुमार सिंह पुत्र स्व0 अरुण कुमार सिंह निवासी फरीदाबाद सिद्धीकपुर, आईटीआई, थाना सरायख्वाजा, जनपद जौनपुर। हाल पता एस0एस0आर0 टावर-116(सी) हरहुआ, काजीसराय, वाराणसी।
- 2- मनीष मिश्रा पुत्र मोहन लाल मिश्रा निवासी कंजवार थाना मझौली, सिधी म0प्र0
- 3- राजीव कुमार मिश्र पुत्र बृजेश मिश्रा निवासी परानीपुर, थाना मेजा, प्रयागराज।

बरामदगी-

- 1- 02 लैपटॉप
- 2- 01 अदद प्रिन्टर
- 3- 05 अदद मोबाइल फोन
- 4- 01 अदद वाहन मारुति एक्सएल-6
- 5- रुपये 19,580/- नकद।

गिरफ्तारी का स्थान/दिनांक:-

शिवगुलाम टोल प्लाजा अतरौला थानाक्षेत्र लालगंज जनपद मीरजापुर। दिनांक 22-01-2025 समय 09.50 प्रातः बजे।

विगत काफी दिनों से एसटीएफ उत्तर प्रदेश को राष्ट्रीय राजमार्गों के विभिन्न टोल प्लाजा पर फास्ट टैग रहित अथवा फास्ट टैग एकाउण्ट में पर्याप्त धनराशि न होने पर उन वाहनों से टोल प्लाजा के बूथ कम्प्यूटर में एनएचआई के साफ्टवेयर/सर्वर के अतिरिक्त अलग से साफ्टवेयर के माध्यम से धोखाधड़ी करके टोल टैक्स गबन करने की सूचना प्राप्त हो रही थी। जिसके सम्बन्ध में श्री विनोद कुमार सिंह, अपर पुलिस अधीक्षक, एसटीएफ वाराणसी एवं श्री विमल कुमार सिंह, पुलिस उपाधीक्षक, एसटीएफ लखनऊ के पर्यवेक्षण में टीम गठित कर अभिसूचना संकलन की कार्यवाही की जा रही थी।

अभिसूचना संकलन के दौरान ज्ञात हुआ कि एनएचआई के साफ्टवेयर/सर्वर के अतिरिक्त अलग से साफ्टवेयर बनाने एवं इंस्टाल करने वाला व्यक्ति के वाराणसी में होने की सूचना पर निरीक्षक श्री दीपक सिंह, निरीक्षक रिजवान, निरीक्षक अनिल कुमार सिंह, उ0नि0 सत्यप्रकाश सिंह मु0आ0 रणविजय तिवारी, आलोक राय, अजय जायसवाल, अनिरुद्ध सुवन त्रिपाठी, आरक्षी अमित सिंह व पुष्प

कुमार की टीम द्वारा मुखबिर की सूचना पर बाबतपुर एयरपोर्ट के पास से आलोक कुमार सिंह को दिनांक 21-01-2025 को सायं 16.00 बजे पछताछ हेतु लाया गया।

आलोक कुमार सिंह ने बताया कि वह एमसीए किया है, उसे साफ्टवेयर बनाने की अच्छी जानकारी है। इसके पूर्व में टोल प्लाजा पर काम भी कर चुका है। रिद्धि-सिद्धि कम्पनी के साथ पूर्व में सावन्त और सुखान्तु के साथ काम किया है। वहीं से टोल प्लाजा का ठेका लेने वाले कम्पनियों/फर्मों के सम्पर्क में आया। उसे यह पता है कि भारत के सभी टोल प्लाजा पर फास्ट टैग अनिवार्य है। जो वाहन बिना फास्ट टैग के टोल प्लाजा से गुजरते हैं, उनसे पेनाल्टी के रूप में दोगुना टोल टैक्स वसूला जाता है। बिना फास्ट टैग वाले वाहनों से दोगुना शुल्क वसूली का गबन करने के उद्देश्य से टोल प्लाजा मालिकों/प्रबन्धकों की मिलीभगत से आलोक कुमार सिंह ने एक ऐसा साफ्टवेयर बनाया जो टोल प्लाजा के किसी एक बूथ पर लगे सिस्टम जिसमें एनएचएआई का साफ्टवेयर लगा रहता है। उसी में टोल पर काम करने वाले आईटी कर्मियों की मिलीभगत से विभिन्न माध्यमों (आनलाईन अथवा आफ लाईन) से साफ्टवेयर इंस्टाल कर देता है। जिसका सीधा आनलाईन एक्सेस इसके निजी लैपटॉप से रहता है। टोल प्लाजा से गुजरने वाले फास्ट टैग रहित वाहनों से लिए जाने वाले दोगुना टोल शुल्क आलोक सिंह द्वारा बनाये गये साफ्टवेयर के माध्यम से वसूला जाता है। उसकी प्रिन्ट पर्ची एनएचएआई के साफ्टवेयर के समान ही रहती है। प्रत्येक टोल/बूथ/ट्रान्जेक्शन का विवरण आलोक सिंह के लैपटॉप में प्रदर्शित होता है। नियमानुसार फास्ट टैग रहित वाहनों से वसूले जाने वाले टोल टैक्स का 50 प्रतिशत एनएचएआई के खाते में टोल प्लाजा द्वारा जमा करना होता है। किन्तु आलोक सिंह द्वारा इंस्टाल किये गये उक्त साफ्टवेयर के माध्यम से टोल प्लाजा मालिकों/प्रबन्धकों द्वारा बिना फास्ट टैग वाले वाहनों से वसूली गयी धनराशि का गबन कर लिया जाता है। उक्त अवैध वसूली/गबन के वाहन को वाहन शुल्क से मुक्त (एक्जेम्प्टेड) श्रेणी दिखाकर वाहन को जाने दिया जाता है। बिना फास्ट टैग वाले वाहनों से वसूले गये टोल टैक्स की औसतन 05 प्रतिशत धनराशि एनएचएआई के असली साफ्टवेयर से वसूली जाती है। जिससे सामान्य रूप से किसी को शक न हो कि फास्ट टैग रहित वाहनों का टोल टैक्स एनएचएआई के खाते में नहीं जा रहा है। गबन की उक्त धनराशि को टोल प्लाजा मालिकों/प्रबन्धकों द्वारा टोल प्लाजा के आईटी कर्मियों, अन्य कर्मियों एवं स्वयं तथा आलोक सिंह व उसके साथियों के बीच अवैध रूप से बाँटकर लाभ लिया जाता है। आलोक सिंह ने यह भी बताया कि उसके साथी सावन्त एवं सुखान्तु की देखरेख में देश के लगभग 200 से अधिक टोल प्लाजा पर इस तरह का साफ्टवेयर इंस्टाल करके टोल टैक्स का गबन किया जा रहा है। आलोक सिंह ने 42 टोल प्लाजा पर अपना साफ्टवेयर इंस्टाल किया है और उससे प्राप्त होने वाले धनराशि स्वयं, परिवारजन एवं अपने ससुर के बैंक खाता/वालेट में आनलाईन/आफलाइन प्राप्त करता है।

आलोक ने यह भी बताया कि विगत दो वर्षों से यह कार्य कर रहा है। अतरैला शिव गुलाम टोल प्लाजा लालगंज, मीरजापुर पर इंस्टाल किये गये उक्त साफ्टवेयर से प्रतिदिन औसतन 45,000/-रुपये का टोल टैक्स गबन पाया गया। अन्य टोल प्लाजा के बारे में छानबीन की जा रही है। आलोक सिंह से प्राप्त जानकारी पर अतरैला शिव गुलाम टोल प्लाजा लालगंज मीरजापुर से बिना फास्ट टैग वाले वाहनों से वसूली कर फोन के माध्यम से टोल पर्ची निकालने वाले कर्मी भनीष मिश्रा एवं टोल मैनेजर राजीव कुमार मिश्रा को गिरफ्तार किया गया। जिनके पास से उपरोक्त बरामदगी हुई। अन्य तथ्यों के बारे में छानबीन की जा रही है।

अभिप्रेत आलोक सिंह द्वारा एनएचएआई सर्वर के अतिरिक्त जिन टोल प्लाजा पर अलग से साफ्टवेयर इंस्टाल किया गया है, उनकी सूची निम्नवत है:-

- 1- हरी टोल प्लाज प्रयागराज 30प्र0
- 2- मुंगारी टोल प्लाजा प्रयागराज 30प्र0
- 3- उमापुर टोल प्लाजा प्रयागराज 30प्र0
- 4- अन्दी टोल प्लाजा लोहरा, आजमगढ़ 30प्र0 (ए0के0सीसी0 कम्पनी)

- 5- बागपत टोल प्लाजा बागपत उ०प्र०(ए०के०सीसी० कम्पनी)
- 6- करीदपुर टोल प्लाजा बरैली उ०प्र०
- 7- पत्नीप्रतापपुर टोल प्लाजा शामली उ०प्र०
- 8- अतरैया शिव गुलाम टोल प्लाजा मीरजापुर उ०प्र०
- 9- नैनसार टोल प्लाजा गोरखपुर उ०प्र०
- 10- चिकली टोल प्लाजा मध्यप्रदेश
- 11- जंगबाणी टोल प्लाजा मध्य प्रदेश
- 12- मोहतारा टोल प्लाजा मध्य प्रदेश (ए०के०सीसी० कम्पनी)
- 13- शालीबाड़ा टोल प्लाजा मध्य प्रदेश।
- 14- राहडोल टोल प्लाजा मध्य प्रदेश
- 15- गहरा टोल प्लाजा मध्यप्रदेश
- 16- फुलैरा टोल प्लाजा जयपुर राजस्थान
- 17- कादीशहना टोल प्लाजा राजस्थान (ए०के०सीसी० कम्पनी)
- 18- शाहपुर टोल प्लाजा राजस्थान
- 19- शाचली टोल प्लाजा राजस्थान कम्पनी एनुवेजन
- 20- मदनपुर टोल प्लाजा आसाम कम्पनी आरके जैन
- 21- बालाचौरा टोल प्लाजा आसाम
- 22- भोजपुरी टोल प्लाजा छत्तीसगढ़ कम्पनी एकेसीसी
- 23- महाराजपुर टोल प्लाजा छत्तीसगढ़।
- 24- मुदियापारा टोल प्लाजा छत्तीसगढ़।
- 25- कुम्हारी टोल प्लाजा दुर्ग उ०प्र०।
- 26- वन टोल प्लाजा जम्मू
- 27- दशरखेड टोल प्लाजा महाराष्ट्र
- 28- खानी बडे टोल प्लाजा बेलवाडी महाराष्ट्र
- 29- मोखा टोल प्लाजा गुजरात कम्पनी एकेसीसी
- 30- रोहिसा टोल प्लाजा गुजरात कम्पनी एकेसीसी
- 31- ओखा मण्डी टोल प्लाजा गुजरात
- 32- कुचाडी टोल प्लाजा गुजरात
- 33- नवासारी टोल प्लाजा झारखण्ड
- 34- तुरुप टोल प्लाजा झारखण्ड कम्पनी एकेसीसी
- 35- तण्ड बलीधा टोल प्लाजा झारखण्ड
- 36- धुलाल टोल प्लाजा पंजाब
- 37- जिघा टोल प्लाजा पंजाब कम्पनी एकेसीसी
- 38- गोबारी टोल प्लाजा पश्चिम बंगाल
- 39- पश्चिम मदासी टोल प्लाजा पश्चिम बंगाल
- 40- कदली गढ़ टोल प्लाजा उड़ीसा
- 41- सनवारा टोल प्लाजा हिमाचल प्रदेश।
- 42- जनगोंव टोल प्लाजा तेलंगाना।

गिरफ्तार अभियुक्तों के विरुद्ध थाना-लालगंज, जनपद मीरजापुर में मु०अ०सं०-१७/२०२५ धारा-३१६(२), ३१७(२), ३१८(४), ३३८, ३३६(३), ३४०(२) बीएनएस का अभियोग पंजीकृत कराया गया है। अग्रिम विधिक कार्यवाही स्थानीय पुलिस द्वारा की जायेगी।

FIRST INFORMATION REPORT

(Under Section 173 B.N.S.S)

प्रथम सूचना रिपोर्ट

(धारा 173 बी एन एस एस के तहत)

1. District/Unit (जिला/इकाई): मिर्जापुर P.S. (थाना): लालगंज Year (वर्ष): 2025

FIR No. (प्र.सू.रि. सं.): 0017

Date and Time of FIR (प्र.सू.रि. की दिनांक और समय): 22/01/2025 13:32 घंटे

2. S.No. (क्र.सं.)	Acts (अधिनियम)	Sections (धारा(एँ))
1	भारतीय न्याय संहिता (बी एन एस), 2023	316(2)
2	भारतीय न्याय संहिता (बी एन एस), 2023	319(2)
3	भारतीय न्याय संहिता (बी एन एस), 2023	318(4)
4	भारतीय न्याय संहिता (बी एन एस), 2023	338
5	भारतीय न्याय संहिता (बी एन एस), 2023	336(3)
6	भारतीय न्याय संहिता (बी एन एस), 2023	340(2)

3. (a) Occurrence of offence (अपराध की घटना):

1 Day (दिन): बुधवार Date from (दिनांक से): 22/01/2025 Date To (दिनांक तक): 22/01/2025

Time Period (समय अवधि): पहर 4 Time From (समय से): 10:20 बजे Time To (समय तक): 10:20 बजे

(b)

Information received at P.S. (थाना जहां सूचना प्राप्त हुई):	Date (दिनांक): 22/01/2025	Time (समय): 13:32 बजे
(c) General Diary Reference (रोजनामचा संदर्भ):	Entry No. (प्रविष्टि सं.): 024	Date and Time (दिनांक और समय): 22/01/2025 13:32 बजे

4. Type of Information (सूचना का प्रकार): लिखित

5. Place of Occurrence (घटनास्थल):

1. (a) Direction and distance from P.S. (थाना से दूरी और दिशा): दक्षिण, 10 कि. मी. Beat No. (बीट सं.):

(b) Address (पता): अतरैला टोल प्लाजा से 500 मीटर ,बहद ग्राम अतरैला राजा

(c) In case, outside the limit of this Police Station, then Name of P.S. (यदि थाना सीमा के बाहर है तो थाना का नाम):

District (State) (जिला (राज्य)):

6. Complainant / Informant (शिकायतकर्ता / सूचनाकर्ता):

(a) Name (नाम): निरीक्षक दीपक सिंह एसटीएफ लखनऊ

(b) Father's/Husband's Name (पिता/पति का नाम):

(c) Date/Year of Birth (जन्म तिथि / वर्ष): 1995 (d) Nationality (राष्ट्रीयता): भारत

(e) UID No. (यूआईडी सं.):

(f) Passport No. (पासपोर्ट सं.):

Date of Issue (जारी करने की दिनांक): Place of Issue (जारी करने का स्थान):

(g)

ID Details (Ration Card, Voter ID Card, Passport, UID No., Driving License, PAN) (पहचान विवरण (राशन कार्ड ,मतदाता कार्ड ,पासपोर्ट, यूआईडी सं., ड्राइविंग लाइसेंस, पैन कार्ड))

S. No. (क्र.सं.)	ID Type (पहचान पत्र का प्रकार)	ID Number (पहचान संख्या)
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(h) Occupation (व्यवसाय):

(i) Address (पता):

S.No. (क्र.सं.)	Address Type (पता का प्रकार)	Address (पता)
1	वर्तमान पता	एसटीएफ लखनऊ , उत्तर प्रदेश, भारत
2	स्थायी पता	एसटीएफ लखनऊ , उत्तर प्रदेश, भारत

(j) Phone number (दूरभाष सं.): Mobile (मोबाइल सं.): 91-98380XXXXX

7. Details of known / suspected / unknown accused with full particulars (ज्ञात / संदिग्ध / अज्ञात अभियुक्त का पूरे विवरण सहित वर्णन):

Accused More Than (अज्ञात आरोपी एक से अधिक हों तो संख्या): 0

S. No. (क्र.सं.)	Name (नाम)	Alias (उपनाम)	Relative's Name (रिश्तेदार का नाम)	Present Address(वर्तमान पता)
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8. Reasons for delay in reporting by the complainant / informant (शिकायतकर्ता / सूचनाकर्ता द्वारा रिपोर्ट देरी से दर्ज कराने के कारण):

9. Particulars of properties of interest (संबन्धित सम्पत्ति का विवरण):

S. No. (क्र.सं.)	Property Category (सम्पत्ति श्रेणी)	Property Type (सम्पत्ति के प्रकार)	Description (विवरण)	Value(In Rs/-) (मूल्य (रु में))
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10. Total value of property (In Rs/-) (सम्पत्ति का कुल मूल्य(रु में)):
11. Inquest Report / U.D. case No., if any (मृत्यु समीक्षा रिपोर्ट / यू.डी.प्रकरण सं., यदि कोई हो):

S. No. (क्र.सं.)	UIDB Number (यू.डी.प्रकरण सं.)
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12. First Information contents (प्रथम सूचना तथ्य):

नकल फर्द फर्द बरामदगी फर्द बरामदगी 05 अदद मोबाइल फोन एन्ड्रायड 02 अदद लैपटाप एक अदद प्रिन्टर, एक अदद गाड़ी व 19580 रु० नगद व 03 नफर अभियुक्त अन्तर्गत धारा 316(2), 319(2), 318(4), 338, 336(3), 340(2) बी.एन.एस एस0टी0एफ 30प्र0 को कई दिनों से सूचना प्राप्त हो रही थी नेशनल हाइवे पे लगे टोल प्लाजा NHAI के साफ्टवेयर / सर्वर के अतिरिक्त अलग से साफ्टवेयर लगाकर धन उगाही किया जा रहा है । इस सम्बन्ध में अपर पुलिस महानिदेशक एस0टी0एफ0 के निर्देशन में एस0एस0 पी0 एस0 टी0एफ0 थे, मार्गदर्शन में ASP श्री विनोद कुमार सिंह व CO श्री विमल कुमार सिंह के पर्यवेक्षण में अभिसूचना संकलन की कार्यवाही प्रारम्भ की गयी तो अभिसूचना तन्त्र (मुखबिर / सर्विलांस)सक्रिय किया गया तो सूचना सही प्राप्त हु आ इस पर निरीक्षक दीपक सिंह के नेतृत्व में टीम गठित कर निरीक्षक रिजवान, उपनिरीक्षक सत्य प्रकाश सिंह, का0 अंकित सिंह व का0 पुष्प कुमार के साथ रवाना होकर क्षेत्र में मामूर था कि जरिये मुखबिर खास सूचना प्राप्त हु आ कि बनारस का आलोक सिंह साफ्टवेयर तैयार कर देश व प्रदेश के कई टोल प्लाजों पर अपना साफ्टवेयर लगा रखा है इसपर जरिये बूभाष ASP श्री विनोद कुमार सिंह से वार्ता कर सहयोग के क्रम में निरीक्षक अनिल कुमार सिंह, हे0 का0 रणविजय तिवारी, हे0 का० आलोक राय, हे0का0 अजय जायसवाल, हे0का0 अनिरुद्ध सुमन त्रिपाठी, हे0का0 ड्राइवर राजेश कुमार उपाध्याय बनारस यूनिट से वाहन सं0 UP 32 EG 0386 से हरहुवा चौराहे पर आकर मिले इस क्रम में हम लोगों में वार्ता हो रही थी कि मुखबिर ने आकर बताया जो साफ्टवेयर बनाता है अपनी गाड़ी से बाबतपुर एयर पोर्ट पर मौजूद है जल्दी किया जाय तो पकड़ा जा सकता है दिनांक 21-01-25 को सायं 16:00 PM बजे पूछताछ हेतु आलोक को रोका गया जो अपने वाहन सं0 UP 65 EN 0098 मारुती XL6 से जाने का प्रयास कर रहा था । उक्त सूचना के सम्बन्ध में कड़ाई से पूछताछ किया गया तो बताया कि साहब यह काम

मैं विगत दो वर्ष से कर रहा हूँ मेरा साफ्टवेयर 30प्र0 सहित देश के कुल 41 टोल प्लाजा पर कार्यरत है । 30प्र0 के सम्बन्ध में पूछा गया तो बताया कि हर्ष टोल प्रयागराज, अम्दी टोल प्लाजा लोहरा आजमगढ़, बागपत टोल प्लाजा बागपत, फरीदपुर टोल प्लाजा बरेली, नैन्सार टोल प्लाजा गोरखपुर सोनौली रोड, पत्नीप्रतापपुर टोल प्लाजा बीबीपुर शामली अतरौला शिव गुलाम टोल प्लाजा मिर्जापुर देश के अन्य राज्यों में मध्यप्रदेश, राजस्थान, तेलंगाना, झारखंड, पंजाब, गुजरात, आसाम, पश्चिम बंगाल, उड़ीसा, हिमांचल, छत्तीसगढ़ जम्मू कश्मीर में विभिन्न जगहों पर मेरा साफ्टवेयर काम कर रहा है । पूछताछ में ए भी बताया कि मैं अपने साफ्टवेयर को मो0फोन, लैपटाप व पेनड्राइव डिवाइस के द्वारा टोलप्लाजा पर इंस्टाल करते हैं । यह पूछने पर टोल प्लाजा के कान्ट्रैक्टर को तुम्हारे साफ्टवेयर से क्या लाभ होता है तो बताया कि भारत के सभी टोल प्लाजा पर फास्टैग अनिवार्य हो गया है जो वाहन बिना फास्टैग के गुजरते हैं तो उसपर शुल्क सहित पेनाल्टी दोगुना वासुला जाता है इसके लिये टोल के किसी लेन पर इस साफ्टवेयर को इंस्टाल करा दिया जाता है जो भी गाड़ी जिस लेने से गुजरती है और उस पर फास्टैग नहीं लगा है उस गाड़ी को इकजम्पशन (जो गाड़ी छूट की होती है जैसे आर्मी, पुलिस, अदर P.T.O (VIP, VVIP) वाइलेंस टोल प्लाजा इकजाशन वाइलेंस बिना फास्टैग के गाड़ी को पास कराकर हमारे साफ्टवेयर के द्वारा हूबहू नकली NHAI के रशीद जैसा रशीद काटकर दोगुना पैसा वासूल कर लेते हैं जो पैसा मिलता है कम्पनी, ठेकेदार व टोल प्लाजा पर लगे कर्मचारी हम लोगों में बट जाता है । यह पूछने पर क्या तुम अपने साफ्टवेयर को निकटतम टोलप्लाजा जहां लगा है दिखा सकते हो तो उसने बताया मैं अतरौला शिवगुलाम टोल प्लाजा पर दिखा सकते हैं और खुद सुझाव दिया यदि आप चेक करना चाहते हैं अपनी गाड़ी को जिसपे फास्टैग नहीं लगा है प्रयोग कर देख सकते हैं। इस पर मय टीम व गाड़ी आलोक के साथ टोलप्लाजा लालगंज मिर्जापुर टोलप्लाजा के लिये रवाना हुआ जरिये दूरभाष एस0ओ0 लालगंज को अवगत कराया गया टोल से 500 मीटर पहले मिलने को कहा गया मिलने पर पूरी टीम को योजना के सम्बन्ध से अवगत कराते हुए टोल पर सरकारी गाड़ी UP.32 EG 4615 को पास कराया गया तो वहां पर 220 रु० की पर्ची काटकर दिया और नगद पैसा लेकर गाड़ी पास कराया जिसपर हम लोग मुतमैन हो गये कि इस साफ्टवेयर के द्वारा निकली पर्ची से गलत काम हो रहा है जिसपर पूरी टीम को बुलाकर मौके पर टोल पर एक साथ दबिश दी गयी लेन नम्बर-04 के बने टोलबूथ के अन्दर एक लड़का खड़ा है जिसके हाथ में मोबाइल फोन टेबल पर सफेद कलर का प्रिन्टर व एक अदद हार्ड

कापी हस्त लिखित व का० पुष्प कुमार के द्वारा वीडियो बनाते हुए कब्जे में लिया गया लड़का का कड़ाई से नाम पता पूछा गया तो उसने अपना नाम मनीष मिश्रा S/O मोहन लाल मिश्रा निवासी ग्राम कंजवार थाना मझौली जनपद-सीधी (म०प्र०) को समय 03:51 AM दिनांक 22-01-25 को हिरासत में लिया गया उसने बताया साहब हम TC के पद पर काम करते हैं मेरा काम है कि जो गाड़ी बिना फास्टैग के आयेगी जायेगी उसको फोन में इंस्टाल साफ्टवेयर से पर्ची निकाल कर देते हैं जो कि NHAI के साफ्टवेयर से नहीं दिया जाता है और गाड़ी को इक्जम्पशन में दिखाकर पास करा दिया जाता है फोन को देखा गया तो साफ्टवेयर (Mob Data) लिखा हुआ है जिसकी IMEI-(1).8659800611313 94,(2).865980061131402 लिखा है जिसका कलर नीला है जिसमें जियों का सिम पड़ा हुआ है प्रिन्टर को देखा गया तो सफेद कलर का जो प्लास्टिक का बना है उसके ऊपर BP BLUPRINTS अंकित है जिसको अन्दर कागज के रोल पड़े हैं तथा बताया कि रात 12.00 बजे से 04:00 बजे तक हार्ड कापी के अनुसार 22 गाड़ी पास किया गया है उसको हमने हाथ से लिखा है । मालिक और होल मैनेजर के बारे में पूछा गया तो मालिक की कभी-कभी आते हैं और मैनेजर ऊपर के केविन में हैं। व N.H.A.I. के जानकारी के बारे में पूछा गया तो बताया कि हाँ N.H.A.I. वालों को जानकारी रहती है । मैनेजर को केविन से बुलाया गया तो उसने अपना नाम राजीव कुमार मिश्रा S/O बृजेश मिश्रा R/O परानीपुर PS-मेजा प्रयागराज बताया पूछने पर बताया कि हम 03 माह से मैनेजर के पद पर कार्य कर रहा हूँ यह टोल प्लाजा शिवा बिल्टेक कम्पनी हरियाणा की है जो टोल वसूली का काम पंकज शुक्ला S/O बैकुंठनाथ शुक्ला R/O लालानगर PS ज्ञानपुर भदोही की देख रेख में चल रहा है और पंकज शुक्ला ने ही अपने व्यक्तिगत सोर्स के आधार पर साफ्टवेयर किसी से इंस्टाल कराया है जिससे हम लोग प्रतिदिन 40-50 हजार के बीच वसूली कर लेते हैं और यह भी बताया कि N.H.A.I. के जानकारी में है और इसका पैसा N.H.A.I. तक जाता है जिसका सारा डाटाबेस N.H.A.I. के साफ्टवेयर में है हम लोग उसे P.T.O इक्जम्पशन (Exemption) में दिया देते हैं और अपने साफ्टवेयर से निकाली हुई पर्ची हूबहू N.H.A.I. की पर्ची की तरह होती है उसे दे देते हैं और सारा पैसा हम लोग आपस में बांट लेते हैं । तीसरे व्यक्ति से पूछताछ किया गया तो उसने अपना नाम आलोक कुमार सिंह S/O अरुण कुमार सिंह R/O फरीदाबाद सिद्धिकपुर पुर I.T.I PS- सरायखयाजा जनपद जौनपुर हालपता SSB TOWER, 106 (C) हरहुवा काजीसराय बनारस बताया जिसके पास से दो अदद फोन 02 अदद लैपटाप व 3000 रुपये बरामद हुए । (1).सैमसंग A73 (रंग बफेद) IMEI-

(1).350472540573752, (II) 358522240573759, □ एप्पल 14+ (रंग सफेद) IMEI – (I).359076396060540,(II). 359076395969246, जियो का सिम लगा हुआ है, व सैमसंग में दो सिम लगे हैं एक एयरटेल एक बोडा का सिम, एक काले कलर का लैपटाप बैग जिसपे HP हुआ है जिसमे एक ACER कम्पनी का व एक DELL कम्पनी का लैपटाप बरामद हुआ ACER कम्पनी का माडल नं0- N-20C4 जिसका पासवर्ड 2022 है । DELL कम्पनी का माडल नम्बर 8FGY662 है । जिससे कड़ाई से पूछताछ किया गया तो उसने बताया कि देशभर में जिन-जिन टोल प्लाजों पर साफ्टवेयर लगे हैं वह टोल प्लाजा क्रमशः निम्नवत है। (1). चिकलीकला टोल प्लाजा(मध्यप्रदेश) (2) फुलेरा टोल प्लाजा (जयपुर राजस्थान) (3) जंगावानी टोल प्लाजा (मध्यप्रदेश) (4). मदनपुर टोलप्लाजा (आसाम) कंपनी R.K.Jain (5).नवासारी टोल प्लाजा (झारखंड) कंपनी अनिल कुमार शुक्ला (6) हरौ टोलप्लाजा प्रयागराज 30प्र0) (7). मुंगारी टोल प्लाजा (प्रयागराज 30प्र0) (8) उमापुर टोल प्लाजा (प्रयागराज 30प्र0) (9). अमडी टोलप्लाजा (आजमगढ़ 30प्र0) कंपनी AKCC (10). बागपत टोलप्लाजा (बागपत 30प्र0) कंपनी AKCC (11). बन टोल प्लाजा (जम्मू) कंपनी राजेश (12) भोजपुरी टोल प्लाजा (छत्तीसगढ़) कंपनी AKCC (13). दशरखेड टोलप्लाजा (महाराष्ट्र) कंपनी RK - Jain (14). फरीदपुर टोलप्लाजा (बरेली 30प्र0) (15). घुलाल टोल प्लाजा (पंजाब) कंपनी RK-Chaudhary (16).गौबारी टोल प्लाजा (पश्चिम बंगाल) कंपनी R.K. Jain (17).कादलीगढ़ टोल प्लाजा (उड़ीसा) सावंत (18) कादीसहना टोलप्लाजा (राजस्थान) NHI48D कंपनी AKCC (19). खानीवडे टोलप्लाजा (बेलवाडी महाराष्ट्र) कंपनी RK Chaudhary (20). कुम्हारी टोलप्लाजा (दुर्ग छत्तीसगढ़) सावंत PTO (21).महराजपुर टोलप्लाजा (छत्तीसगढ़) NH43 R.K. Jain (22). मोहतारा टोल प्लाजा (मध्यप्रदेश) कंपनी AKCC (23). भोखा टोल प्लाजा (गुजरात) कंपनी AKCC (24). मुदियापारा टोलप्लाजा (छत्तीसगढ़) सावंत (25). नैन्सार टोलप्लाजा (गोरखपुर 30प्र0) सावंत (26). पत्नी प्रतापपुर टोल प्लाजा (शामली 30प्र0) कुलदीप (27). रोहिसा टोल प्लाजा (गुजरात) NH51 कंपनी AKCC (28). शालीवाडा टोल प्लाजा (मध्य प्रदेश) NH 30 कुलदीप (29). सनवारा टोल प्लाजा (हिमांचल प्रदेश) सावंत (30) शहडोल प्लाजा (मध्य प्रदेश) कुलदीप (31) शाहपुरा टोल प्लाजा (राजस्थान) कुलदीप (32) जनगांव टोल प्लाजा (तेलंगाना) सावंत (33) तुरुप टोल प्लाजा (झारखंड) कम्पनी AKCC (34) जिधा टोलप्लाजा (पंजाब) NH54 AKCC (35). टंड बलीधा टोल प्लाजा (झारखंड) कम्पनी RK. Chaudhary (36) अतरैला सिंह गुलाम टोल प्लाजा (मिर्जापुर 30प्र0) पंकज शुक्ला (37). बाला चेरा टोल प्लाजा (आसाम) सावंत (38) गधाटोल प्लाजा

(मध्यप्रदेश) सावंत (39).ओखामण्डी टोल प्लाजा (गुजरात) सावंत (40)पश्चिम मदाती टोल प्लाजा (पश्चिम बंगाल) कंपनी इनोविजन (41).सावली टोल प्लाजा (राजस्थान) कंपनी इनोविजन (42) कुचाड़ी टोल प्लाजा (गुजरात) सावंत और मैं रिद्धि सिद्धि कम्पनी के साथ पूर्व में मैं व मेरा पार्टनर सावंत व सुखान्तु जिसके देखरेख में यही कार्य 150-200 टोलों पर किया जा रहा है जिसके नाम पता मुझे नहीं मालूम है, मैं पूर्व में MCA किया हुआ हूँ और साफ्टवेयर बनाने की अच्छी जानकारी है जो ANY नाम से साफ्टवेयर तैयार किया है जो हमारे फोन व लैपटाप (ACER) की D-Drive में मौजूद है जिसमें टोल से सम्बन्धित सारे डाटा मौजूद हैं व मैं पूर्व में टोल पर जाब कर चुका हूँ और वहीं से सभी कम्पनियों से सम्पर्क में आया और साफ्टवेयर तैयार किया । मैं पिछले वर्ष से साफ्टवेयर कंपनियों के लिये बना रहा हूँ जिससे 01 टोल से एक दिन का मेरे साफ्टवेयर के डाटाबेस के अनुसार 40-50 हजार रुपये नगद अबैध रूप से अर्जित होता है । P.T.O. इस हिसाब से मेरे पास इस समय 42 टोल हैं जिसके अनुपात से हम लोग (कैंट्रैक्टर, टोल कर्मी, N.H.A.I. व मैं) विगत दो वर्षों में करीब 120 करोड़ रु0 आफलाइन व आनलाइन अर्जित किया है मैं अपना कुछ पैसा ससुर राजकुमार सिंह के खाते में मंगाता था । उपरोक्त मनीष मिश्रा के पास से बरामद एक अदद रेडमी 12.C मोबाइल फोन जिसका IMEL नम्बर –(I)

861612069940898 (II). 861612069940906 व टोल से पास की गयी गाड़ी यों से बरामद पैसा नगद 16580/- रु० मिला। व राजीव कुमार मिश्रा के पास से एक अदद रेडमी नोट 105 जिसकी IMEI (I). 86693505 2943388 (II).866935052943396 मोबाइल फोन बरामद हुआ। उपरोक्त सभी अभियुक्तों को टोल प्लाजा से अपना साफ्टवेयर बनाकर अवैध तरीके से की गयी वसूली का जुर्म धारा 316(2), 319(2), 318 (4), 338, 336 (3), 340 (2) BNS बताकर मा० उच्चातम न्यायालय व मानवाधिकार आयोग के आदेशों का अक्षरशः पालन करते हुए समय करीब 10:20 AM पे पुलिस हिरासत में लिया गया फर्ड मौके पर टोल प्लाजा से 500 मीटर की दूरी पर टार्च व मोबाइल की रोशनी से काम प्रारम्भ करते हुए मुझ निरीक्षक द्वारा का० अंकित सिंह से फर्ड बोल-बोलकर लिखवाया जा रहा है तथा मौके पर थानाध्यक्ष लालगंज SI संजय कुमार सिंह, हे०का० इस्लाम खाँ, हे० का० शाहिद परवेज खान व का० चालक श्रीनिवास यादव वाहन सं०UP63G 0435 से उपस्थित हैं । बरामद टोल प्लाजा साफ्टवेयर इंस्टाल किया गया मोबाइल, प्रिन्टर, चार्जर व वसूली से प्राप्त 16580/- रु० को प्लाटिक के डिब्बे में रखकर सील मोहर किया गया तथा अभियुक्त आलोक के दो अदद लैपटाप को काले रंग के बैग में रखकर सफेद कपड़े से सील सर्वमोहर

किया गया तथा मनीष व राजीव के जामा तलाशी से प्राप्त निजी मोबाइल अलग-2 डिब्बे में (पारदर्शी) रख कर सील सर्व मोहर किया गया व आलोक के दो अदद फोन व 3000 रुपये सफेद प्लास्टिक के डिब्बे में रखकर सीलसर्व मोहर किया गया मौके पर जनता के लोग उपस्थित है गवाही के लिए कहा गया तो भलाई बुराई वास्ता देकर बिना नाम पता बताये मौके से हट बढ़ गये । पूरे फर्द को मुझ निरीक्षक द्वारा पढ़ कर सुझाकर अभियुक्त सहित सभी के हस्ताक्षर बनवाये जा रहे हैं । हस्ताक्षर निरीक्षक दीपक सिंह मय निरीक्षक श्री रिजवान, उपनिरीक्षक श्री सत्य प्रकाश सिंह मय हमराह का० अंकित सिंह व का० पुष्प कुमार एस०टी०एफ० मुख्यालय लखनऊ व निरीक्षक अनिल कुमार सिंह, हे०का० रणविजय तिवारी, हे०का० आलोक राय, हे०का० अजय जायसवाल, हे०का० अनिरुद्ध सुमन त्रिपाठी, S० श्री संजय कुमार सिंह , हे०का० इस्लाम खाँ ,हे०का० शाहिद परवेज खाँ ,चालक का० श्रीनिवास यादव हस्ताक्षर अभियुक्त आलोक कुमार सिंह ,मनीष मिश्र ,राजीव मिश्र नोट:- फर्द की एक छायाप्रति तीनों अभियुक्तों की सहमति से अभियुक्त आलोक कुमार सिंह को दी गयी । हस्ताक्षर आलोक कुमार सिंह अंग्रेजी में नोट- संलग्न फर्द 04 अदद टोल प्लाजा से प्राप्त रसीद की फोटो कापी टोल प्लाजा का प्रतिदिन का प्राप्त कैश कलेक्शन की छायाप्रति अतरैला टोल हार्ड कापी 01 अदद कुल 04 वर्क फर्द संलग्न हस्ताक्षर निरीक्षक दीपक सिंह एसटीएफ लखनऊ दिनांक 22.01.25 नोट:- मै का०मु० मनोज कुमार प्रजापति प्रमाणित करता हूँ कि मेरे द्वारा बोल-बोल कर कम्प्यूटर पर का० इन्द्रजीत से टाइप करवाया गया ।

13. Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2.

(की गयी कार्यवाही : चूंकि उपरोक्त जानकारी से पता चलता है कि अपराध करने का तरीका भद सं. 2 में उल्लेख धारा के तहत है.):

(1) Registered the case and took up the investigation (प्रकरण दर्ज किया गया और जांच के लिए लिया गया): / or (या)

(2) Directed (Name of I.O.) (जांच अधिकारी का Rank (पद): उपनिरीक्षक/ नाम): AJAY KUMAR MISHRA अवर निरीक्षक

No. (सं.): 922760453

to take up the Investigation (को जांच अपने पास में लेने के लिए निर्देश दिया गया) or (या)

(3) Refused investigation due to (जांच के लिए): or (के कारण
इंकार किया या)

(4) Transferred to P.S. (थाना): District (ज़िला):

on point of jurisdiction (को क्षेत्राधिकार के कारण हस्तांतरित).

F.I.R. read over to the complainant / informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

(शिकायतकर्ता / सूचनाकर्ता को प्राथमिकी पढ़ कर सुनाई गयी, सही दर्ज हुई
माना और एक कॉपी निशुल्क शिकायतकर्ता को दी गयी)

R.O.A.C. (आर.ओ.ए.सी.)

Signature of Officer in charge,
Police Station (थाना प्रभारी के
हस्ताक्षर)

14. Signature / Thumb impression
of the complainant / informant
(शिकायतकर्ता / सूचनाकर्ता के
हस्ताक्षर / अंगूठे का निशान)

Name (नाम): SANJAY
KUMAR SINGH

Rank (पद): SI (Sub-Inspector)

No. (सं.): 952766304

15. Date and time of dispatch to the court (अदालत में प्रेषण की दिनांक और
समय):

7/26/25, 9:47 AM

Innovision Ltd. Mail - FW: Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudu.



Shyam B Singh <shyam.singh@innovision.co.in>

FW: Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudulent practices observed at the Paschim Madati FP, Sabli FP.**Garg Mudit, GM(T)** <gargmudit@nhai.org>

To: "Info@innovision.co.in" <Info@innovision.co.in>, "shyam.singh@innovision.co.in" <shyam.singh@innovision.co.in> 25 June 2025 at 16:45

Cc: "Sharma Nitin, DGM (Tech)" <nitinsharma@nhai.org>

The meeting has been rescheduled for tomorrow, i.e. 26.06.2025 at 10:00 AM.

All concerned are requested to make it convenient to attend the meeting as per the revised schedule.

From: Garg Mudit, GM(T)**Sent:** 24 June 2025 09:59**To:** 'Info@innovision.co.in' <Info@innovision.co.in>**Subject:** FW: Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudulent practices observed at the Paschim Madati FP, Sabli FP.**From:** Garg Mudit, GM(T)**Sent:** 23 June 2025 18:35**To:** 'Info@innovision.co.in' <Info@innovision.co.in>**Cc:** 'memberadmin@nhai.org' <memberadmin@nhai.org>; RO Kolkatta <rokkolkatta@nhai.org>; RO-WestUP <rowestup@nhai.org>; PIU Siliguri <sil@nhai.org>; PIU Bareilly <bareilly@nhai.org>; PIU Katni <katni@nhai.org>; Sharma Nitin, DGM (Tech) <nitinsharma@nhai.org>**Subject:** Show Cause Notice for termination of contract agreement and debarment for a period of 1 year for fraudulent practices observed at the Paschim Madati FP, Sabli FP.

Kindly ignore earlier email on above subject.

Kindly read personal hearing date 26.06.2025.

C(24-27)

(24)

7/26/25, 9:46 AM

Innovision Ltd. Mail - Engagement of user fee agency through e-tender at for the section from Paschim Madati Fee Plaza at km 547...



Shyam B Singh <shyam.singh@innovision.co.in>

Engagement of user fee agency through e-tender at for the section from Paschim Madati Fee Plaza at km 547.350 for use of Dalkhola-Islampur Bypass-Ghoshpukur Section (from design Kilometer 0.000 to design kilometer 10.360 of Islampur Bypass and existing ki

Garg Mudit, GM(T) <gargmudit@nhai.org>

18 March 2025 at 18:25

To: "Info@innovision.co.in" <Info@innovision.co.in>, "sandip.sharma@innovision.co.in" <sandip.sharma@innovision.co.in>

Cc: "Babu Kishore , PS to Member (Admn.)" <kishorebabu@nhai.org>, "Basit Abdul, CGM (CO)" <abdulbasit@nhai.org>, "Nag Subrata, GM (T)" <subratagan@nhai.org>, RO Kolkatta <rokolakatta@nhai.org>, PIU Siliguri <sil@nhai.org>, "Mohit Kushwah, Manager (Tech.)" <mohitkushwah@nhai.org>

Dear Sir,

Please find enclosed herewith the attachment on subject cited matter.



Innovision Pashim Madati FP.pdf
1115K



सत्यमेव जयते

भारतीय राष्ट्रीय राजमार्ग प्राधिकरण

(सड़क परिवहन और राजमार्ग मंत्रालय, भारत सरकार)

National Highways Authority of India

(Ministry of Road Transport and Highways, Government of India)

जी-5 एवं 6, सेक्टर-10, द्वारका, नई दिल्ली - 110 075 • G-5 & 6, Sector-10, Dwarka, New Delhi-110075

दूरभाष/Phone : 81-11-25074100 / 25074200



CODIV-11036/2/2025-CO Division /Debar/ 06

Date: 18.03.2025

To,

Authorized Signatory,

M/s Innovision Ltd,

Plot No. 251, Udyog Vihar, Phase-IV, Gurugram,
Haryana

Email: info@innovision.co.in;

sandip.sharma@innovision.co.in

Subject: Engagement of user fee agency through e-tender at for the section from Paschim Madati Fee Plaza at km 547.350 for use of Dalkhola-Islampur Bypass-Ghoshpukur Section (from design Kilometer 0.000 to design kilometer 10.360 of Islampur Bypass and existing kilometer 506.950 to kilometer 551.000 of National Highway 31) of National Highway Number 31 in the state of West Bengal

Ref.:(i) NHAI Show Cause letter no. NHAI/13013/CO/2024/E- 272743 dated 25.01.2025.

(ii) Your reply letter dated 29.01.2025

This is in reference to your reply letter cited under ref. (ii) in respect of the Show Cause Notice cited under ref.(i) wherein you were directed to show cause as to why no penal action shall be taken against you for being involved in the fraudulent activity of unauthorized fee collection at the subject fee plaza as per the finding of UP STF in raid conducted on 22.01.2025 and FIR filed by UP STF dated 22.01.2025.

2. You have submitted your reply cited in ref. (ii) and after examination of your reply and cash collection report at the subject fee plaza, it was found that the cash collection post raid was considerably higher than the cash collection pre-raid period which clearly substantiate the default on your part (Annexure-1).

3. Therefore, it is established beyond doubt that you/your Firm were involved in the fraudulent activities of user fee collection through unauthorized system, in violation of Clause-21 of the Contract Agreement and Clause 3.1 & 3.2 of the RFQ.

4. Further, Clause 35(3) of the Contract Agreement provides the following:

"Notwithstanding anything contained in clause (1) above, the Authority may terminate the Contract forthwith for breach or non-observance of any of the terms and conditions of this Contract or for any misconduct on the part of Contractor or his employee/staff/personnel or for overcharging of User Fee from a user, or for harassment of any user."

5. As regards, the recovery of financial losses, Clause 17(c) of the Contract Agreement provides the following:

- (i) The Authority shall also be competent to utilize the said Performance Security against any loss or damage caused to the property of the Authority by any act of omission and/or commission by the Contractor or its agents and servants or adjust it towards any claim of the Authority.
- (ii) The Contractor undertakes that, in case of any default on its part to perform and observe any of the covenants, conditions or provisions contained in this Contract, it shall be lawful for the Authority in its absolute discretion to forfeit the whole or any part of the said Performance Security, without prejudice to any other remedy that the Authority may have against the Contractor under this Contract or under general law for such breach."

6. After giving you an ample opportunity of being heard and finding your replies unsatisfactory and considering the seriousness of the issue involved; the Authority has decided to Terminate the Contract Agreement for the subject fee plaza by invoking Clause 35(3) of the Contract Agreement and also Debar you/your Firm (including Directors/Owners) for a period of Two (02) years as per the Clause-21 (i) of the Contract Agreement and Clause 3.1 & 3.2 of the RFQ. Further, considering that you have failed to disprove the finding of UP STF regarding unauthorized cash collection and non-deposition of actual double fee collected from non-FASTag vehicles to NHAI Account, the Performance Security (Cash+BG) for the subject fee plaza, is being en-cashed in violation of the provisions of the Contract Agreement.

7. However, to protect the Govt. Revenue, shortly you will be intimated separately for handing Over of Toll Plaza to the New Agency and till such time you will continue to collect Fee as per Terms & Conditions of existing Contract.

8. This is without prejudice to any other Rights and remedies available to the Authority.

This issues with the approval of Competent Authority.

Yours sincerely,

Encl.: As above (Annexure-1).



(Mudit Garg)
General Manager (CO)

Copy for information to the following:

- (i) Member (Admin), NHAI HQ, New Delhi
- (ii) Regional Officer, Kolkata
- (iii) Project Director, PIU Jalpaiguri

You are hereby requested to take necessary actions in the matter and also en-route ETC Collections directly to the NHAI Account in consultation with IHMCL.

Annexure 1

S.No	Toll Plazas	User Fee Agency	Pre-Incident			Post Incident			% Increase in the cash collection Post-Incident					
			14th Jan - 22th Jan		23rd - 31st Jan (Week 1)		1st - 7th Feb (Week 2)		8th - 14th Feb (Week 3)		Post-Incident			
			Cash collection		Cash collection		Cash collection		Cash collection		Week 1	Week 2	Week 3	Average
			No. of Vehicles	Amount	No. of Vehicles	Amount	No. of Vehicles	Amount	No. of Vehicles	Amount				
1	Paschim Medani	Innovision Ltd	1,288	19,030	873	47,170	1,068	56,520	914	53,560	148%	197%	182%	176%

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7/26/25, 10:18 AM

Innovision Ltd. Mail - Fwd: Debarment of agency and termination of Contract Agreement (Without - prejudice) - Paschim Madati Fe...



Shyam B Singh <shyam.singh@innovision.co.in>

Fwd: Debarment of agency and termination of Contract Agreement (Without - prejudice) - Paschim Madati Fee Plaza & Sabli Fee Plaza.

Bijender Yadav <info@innovision.co.in>

25 July 2025 at 21:35

To: meesam raza <meesam.razaa@gmail.com>, Shyam B Singh <shyam.singh@innovision.co.in>

--
Thanks & Regards
Bijender
Finance & Account

INNOVISION LIMITED

Plot No.251, 1st Floor Phase 4 Udyog Vihar
Gurugram-122015, Haryana (INDIA)
Mob. : +919899920039, +919971002105
Tel : 0124-2341602
Email : info@innovision.co.in

----- Forwarded message -----

From: **GM (CO)-I** <gmcotoll1@nhai.org>

Date: Fri, 25 Jul, 2025, 20:15

Subject: Debarment of agency and termination of Contract Agreement (Without - prejudice) - Paschim Madati Fee Plaza & Sabli Fee Plaza.

To: Info@innovision.co.in <Info@innovision.co.in>

Cc: Babu Kishore , PS to Member (Admn.) <kishorebabu@nhai.org>, RO Kolkatta <rokokkatta@nhai.org>, RO-WestUP <rowestup@nhai.org>, PIU Siliguri <sil@nhai.org>, PIU Bareilly <bareilly@nhai.org>, Vaibhav Goyal, Manager (T) <vaibhavgoyal@nhai.org>, Basit Abdul, CGM (CO) <abulbasit@nhai.org>

Enclosed please find.

Letter 291 - Innovision.pdf
2155K



सन्तुष्टता लया

भारतीय राष्ट्रीय राजमार्ग प्राधिकरण

(सड़क परिवहन और राजमार्ग मंत्रालय, भारत सरकार)

National Highways Authority of India

(Ministry of Road Transport and Highways, Government of India)

जी-5 एवं 6, सेक्टर-10, द्वारका, नई दिल्ली - 110 075 • G-5 & 6, Sector-10, Dwarka, New Delhi-110075

दूरभाष/Phone : 91-11-25074100 / 25074200



No. NHAI/CODIV-11036/2/2025-CO Division/E-288410/291

Date: 25.07.2025

To,

Authorised Representative,
M/s. Innovision Ltd.
Plot No. 251, 1st Floor,
Udyog Vihar Phase-4,
Gurugram - 122015 (Haryana)
Email: info@innovision.co.in

Sub:- Engagement of User Fee collection agency on the basis of Competitive bidding through e-tender and upkeep/maintenance of adjacent Toilet blocks including recouping the consumable items at,

- I. Paschim Madati Fee Plaza at km 547.350 for use of Dalkhola-Islampur Bypass-Ghoshpukur Section (from design Kilometer 0.000 to design kilometer 10.360 of Islampur Bypass and existing kilometer 506.950 to kilometer 551.000 of National Highway 31) in the state of West Bengal.
- II. Sabli in Shahjahanpur Distt. Fee Plaza at design/existing km.61.500 for the section from Design Km. 51.000 to km 105.500 (existing Km.50.675 to Km.105.500) (Powayan-Puranpur (2 lane with PS) of NH-730A, in the state of Uttar Pradesh.

Reg.:- Debarment of your Agency and Termination of the Contract Agreement - (Without-prejudice).

Ref.:

1. LOA dated 21.12.2023 for Paschim Madati Toll Plaza Et LOA dated 05.09.2024 for Sabli Toll Plaza.
2. Contract Agreement dated 01.01.2024 Paschim Madati Toll Plaza and Agreement dated 11.09.2024 for Sabli Toll Plaza.
3. Show Cause Notice letter no. CODIV-13013/CO/2024/E-272743 dated 25.01.2025
4. Contractor reply to 'Show Cause Notice' letter dated 29.01.2025
5. FIR bearing No. 0017/2025 dated 22.01.2025
6. Press Note No. 36 by STF, UP dated 22.01.2025
7. Show Cause Notice letter No. NHAI/CODIV-11036/2/2025-CO Division/E-273915/170 dated 23.06.2025;
8. Contractor reply to 'Show Cause Notice' letter dated 07.07.2025;

This is in reference to your reply letter cited under Ref. (8) in respect of the Show Cause Notice cited under Ref. (7) wherein you were directed to show cause as to why no penal action shall be taken against you for being involved in the fraudulent activity of unauthorized fee collection at the subject fee plazas.

2. It was brought to the Authority's attention that the UP Special Task Force (STF) conducted a raid on 22.01.2025 at "Shivgulam Toll Plaza, Atraula, PS - Lalganj, District - Mirzapur" and arrested 3 members of a gang, which were reportedly involved in causing loss

[Signature]

[Signature]

[Signature]

of national revenue by embezzling Toll Fee by committing fraud using POS machine from vehicles without Fast Tag or invalid Fast Tag at various Toll Plazas of the NHAI. In this connection, an FIR bearing No. 017/2025 dated 22.01.2025 was accordingly registered and Press Note No. 36 was issued by the UP-STF wherein Paschim Madati and Sabli Fee Plaza was named in FIR for being involved in fraudulent activity of unauthorized fee collection. These toll Plazas were being operated by Agency M/s. Innovision Ltd., when STF raids were held as also mentioned in FIR report at Sr. No. (40) and (41)

3. Considering the above facts and circumstances, Show Cause Notice dated 25.01.2025 was issued to your Company. The Contractor replied to the same vide letter under ref. (4). However, on finding the Contractor's letter in response to the Show Cause Notice(s) unsatisfactory, vide order bearing No. CODIV-11036/2/2025-CO Division/Debar/06 dated 18.03.2025 for Paschim Madati Toll plazas, action was taken against the Contractor as per the terms of the Contract Agreement, and including termination of the Contract Agreement dated 01.01.2024 and debarment for a period of 2 years.

4. That the said impugned order dated 18.03.2025 was challenged before the Hon'ble High Court at Delhi by the Contractor. That the Hon'ble High Court vide order dated 24.03.2025 in W.P. (Civil) No. 3642/2025 and CM APPLs.17012/2025, 17013/2025 granted liberty to the Authority to issue a fresh Show Cause Notice.

5. In accordance with Hon'ble High Court Order, fresh Show Cause Notice was issued to your Agency vide this office letter in ref(7) and opportunity was granted to you for personal hearing before Competent Authority. Further this personal hearing was attended by your representatives, Sh. Shyam Bahadur on 26.06.2025.

6. After examination of your reply to Show Cause Notice submitted vide letter under ref.(8), the para wise comments of this office are as below:

6.1 Reply to para-1: The comments of UFCA is vehemently denied as the Show Cause Notice issued by NHAI is supported with facts and figures.

6.2 Reply to para-2: As detailed in Show Cause Notice, UFCA has failed in fulfilling its commitments as per provision of Contract Agreement.

6.3 Reply to para-3: The Show Cause Notice issued by NHAI is supported with facts and figures which shows fraudulent activity by the UFCA.

6.4 Reply to para-4.(i): As per FIR report at Sr. No. (40) and (41), your name has categorically been mentioned for Paschim Madati and Sabli Fee Plaza.

6.5 Reply to para-4.(ii): The presence of SI does not exempt the toll agency from operational accountability.

6.6 Reply to para-4.(iii): Mere absence of observations during inspections does not negate the factual findings that emerged later through a law enforcement-led investigation. Routine inspections are not forensic audits and may not detect hidden software-based manipulations/or any separate equipment like POS etc.

6.7 Reply to para-4.(iv): The comments of UFCA is not true as after analyzing ETC collection data for pre-Incident and post-incident time period, it is seen that while average ETC collection for post-incident time period is varying upto 15% of pre-incident amount, however cash collection has increased in range of 182% to 440% for some plazas. Detailed Comparison of the same is tabulated below:

[Handwritten signature]

[Handwritten mark]

Period		Paschim Madati		Sabli	
From	To	Cash	ETC	Cash	ETC
14-01-2025	22-01-2025	19010	20244580	5940	781095
23-01-2025	31-01-2025	47170	19408970	15260	769825
		148%	-4%	157%	-1%
01-02-2025	07-02-2025	56520	14715145	23870	648915
		197%	-27%	302%	-17%
08-02-2025	14-02-2025	53560	15015230	32080	637700
		182%	-26%	440%	-18%

From above Table; it is evident that the cash collection has been increased post incident to around 200-400%, for some plazas however, ETC collection has not increased, moreover, reduced to around 25% i.e. No surge is seen in ETC collection but unprecedented surge is seen in cash collection only post STF raids. This is clear evidence that post STF raids fraudulent collection was stopped by contractor and hence this fraudulent collection started reflecting as surge in cash collection.

6.8 Reply to para-4.(v): Further, the period of Mahakumbh Mela was started from 13th Jan, 2025 to 26 Feb, 2025, however, the surge in cash collection is seen post raid which resembles that surge in cash collection was not due to Mahakumbh Mela but due to stoppage of fraudulent collection by contractor post raid of STF.

6.9 Reply to para-5: The maintenance works are gradual developments and traffic gets impacted over period of time and due to such obstruction both ETC as well as cash collection gets impacted, however, from the collection reports, it is observed that only cash collection is increased post raids and not ETC collection which is clear evidence that post STF raids fraudulent collection was stopped by contractor.

6.10 Reply to para-6: The comments of UFCA is strictly denied due to reasons mentioned in para 6.5 to 6.7 above.

6.11 Reply to para-7: The cash collections reports as brought out above, clearly brings out that that post STF raids fraudulent collection was stopped by contractor and hence this fraudulent collection started reflecting as surge in cash collection.

6.12 Reply to para-8: The FIR clearly mentions Sabli Fee Plaza, which was operated by you before the UPSTF raid and it has also been mentioned that you were using the software for fraudulent activity.

6.13 Reply to para-9: As per Clause 23(f) of the Contract agreement, the contractor also agree to abide by the requirement of Clause 21 in order to maintain operational transparency at the fee plaza. In case of non-compliance of any of the obligations, penal provisions is defined in the Contract Agreement as well as NHAI Policy Circular No. 17.5.87/2024 dated 25.01.2024.

6.14 Reply to para-10: The comments of UFCA is vehemently denied due to reasons stated above.

6.15 Reply to para-12: The comments of UFCA does not signifies the reason for sudden increase in cash collection post STF raid.

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6.16 Reply to para-14: The comments of UFCA is denied as the Show Cause notice was supported with facts and figures and ample opportunity was granted to the UFCA for submitting the reasons for irregularities observed in the toll plazas.

6.17 Reply to para-15&16: The comments of UFCA is denied due to above mentioned reasons and as the reply of UFCA is not based on facts and figures. Further, ample opportunity was granted to the Contractor but UFCA has failed to submit any documents/evidence in support of its submissions.

7. In view of above, it is seen that your reply is not based on facts and figures & hence is not acceptable. Therefore, Competent Authority is of the view that you were involved in the fraudulent activity of user fee collection through unauthorized system, in violation of the Contract Agreement Clause- 21, which is as under:

- i. All transactions including cash, violations, and exemptions/concessions will be processed through ETC System available at fee plaza. Usage of electronic ticketing machine or any such devices like handheld Point-of-Sale (POS) terminal, POS Billing machine etc. is strictly prohibited for user fee collection at NH fee plazas. Furthermore, the deployment or usage of any alternate software/system for user fee collection at NH fee plaza, except for the TMS through which FASTag transactions are processed, is also strictly prohibited. Any instance of usage of such handheld devices or unauthorized software/system shall be treated as Fraudulent Activity and any User Fee Collection agency (ies), including the Director(s) of such entities or owner, found practicing such fraudulent activities at NH fee plazas will attract penal action as per clause 20 of the contract agreement including debarment from NHAI for a period up to (1) year.
- ii. Lane IDs will be correctly mapped in transaction files and no fraudulent transaction will be hosted to Acquirer host.
- iii. Valid users are to be added into discount category through User fee Collection portal as provided by Acquirer Bank and ensure that such transactions shall process using FASTag only.
- iv. Chargeback raised by Acquirer bank is to be validated timely as per timeline defined in latest PG/ICD document.
- v. No fraudulent/parallel system in lanes to process cash/exempt transaction.
- vi. Video recording system of toll plaza."

8. Further, Clause 35(3) of the Contract Agreement provides the following:

"Notwithstanding anything contained in clause (1) above, the Authority may terminate the Contract forthwith for breach or non-observance of any of the terms and conditions of this Contract or for any misconduct on the part of Contractor or his employee/staff/personnel or for overcharging of User Fee from a user, or for harassment of any user."

9. As regards, the recovery of financial losses, Clause 17(c) of the Contract Agreement provides the following:

- i. The Authority shall also be competent to utilize the said Performance Security against any loss or damage caused to the property of the Authority by any act of omission and/or commission by the Contractor or its agents and servants or adjust it towards any claim of the Authority.
- ii. The Contractor undertakes that, in case of any default on its part to perform and observe any of the covenants, conditions or provisions contained in this Contract, it

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shall be lawful for the Authority in its absolute discretion to forfeit the whole or any part of the said Performance Security, without prejudice to any other remedy that the Authority may have against the Contractor under this Contract or under general law for such breach."

10. After giving you ample opportunity of personal hearing before the Competent Authority, your reply has been found unsatisfactory as detailed in Para-6 above, therefore, the Authority decided to, debar your firm i.e. M/s. Innovision Ltd. (including directors/owners) for a period of 01 year as per the Clause-21 (i) of the Contract Agreement.
11. This is without prejudice to any other Rights and remedies available to the Authority.
12. This Issues with the approval of Competent Authority.

Yours sincerely,

(Mudit Garg)

General Manager (CO)

Copy for kind information to:-

- i. PS to Member (A), NHAI HQ.
- ii. RO-Kolkata, NHAI.
- iii. RO-UP West, NHAI.
- iv. PD PIU-Jalpaiguri.
- v. PD PIU-Bareilly.



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IN THE HIGH COURT OF DELHI AT NEW DELHI

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W.P.(C) 3642/2025 and CM APPL.17012/2025**M/S INNOVISION LTD**

.....Petitioner

Through: Mr. Sumeet Pushkarna, Sr. Adv., Ms.
Shreya Mittal, Ms. Bindu Das, Ms.
Nandita Mishra and Ms. Meera
Chugh, Advs.

versus

NATIONAL HIGHWAY AUTHORITY OF INDIA AND ANR.

.....Respondents

Through: Mr. Apoorv Kurup, Sr. Adv., Mr.
Namit Saxena and Ms. Isha Nagpal,
Advs. for NHAI.

CORAM:**HON'BLE MR. JUSTICE SACHIN DATTA****ORDER****28.03.2025**

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1. The present petition has been filed assailing the impugned letter/ communication dated 18.03.2025 bearing no. CODIV-11036/2/2025-CO Division/Debar/06 issued by the National Highway Authority of India [NHAI / respondent] in regard to Paschim Madati Fee Plaza (Annexure-P1).

2. *Vide* the above impugned letter / communication, the following action has been taken against the petitioner –

- (i) the ongoing contract agreement dated 01.01.2024 between the parties, pursuant to which the petitioner operates the Paschim Madati Fee Plaza as the user fee collection agency, has been terminated in terms of Clause 35(3) of the Contract Agreement between the parties;
- (ii) the petitioner has been debarred from participating in future tender/s issued by the respondent no.1 for a period of two years in



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terms of Clause 21(i) of the Contract Agreement and Clause 3.1 & 3.2 of the Request for Qualification dated 01.01.2021 (RFQ) between the petitioner and the respondent;

(iii) on the basis of the above, the performance security / bank guarantee with respect to the contract agreement for operating the aforesaid fee plaza, deposited by the petitioner in terms of Clause 2.10 of the Request For Proposal dated 04.12.2023, have been sought to be encashed.

3. Learned senior counsel for the petitioner submits that the impugned action has been taken on the basis of a show cause notice issued on 25.01.2025 where, apart from a cryptic reference to an investigation by the Uttar Pradesh Special Task Force (UPSTF) resulting in an FIR No. 0017 filed on 22.01.2025 at P.S. Lalganj, Distt Mirzapur, Uttar Pradesh, no specific attribution/ lapse against the petitioner has been pointed out.

4. Further, it is submitted that a response to the said show cause notice was submitted *vide* communication dated 29.01.2025 wherein *inter alia* the following points were emphasised:-

- i. That the petitioner has adhered to the operational guidelines issued by the NHAI.
- ii. That no activity in contravention of Clause 21 of the contract agreement between the parties was carried out by the petitioner.
- iii. That nothing was found by the petitioner even after conducting a thorough internal review subsequent to receiving the show cause notice from the respondent.

It is submitted that the impugned letter fails to even notice much less deal with the submissions made by the petitioners in response to the show cause



notice.

5. Further, it is brought to the attention of this Court that whereas the show cause notice sought to debar the petitioner only for a period of one year, the impugned letter purports to terminate the contract and also debar the petitioner for a period of two years.

6. It is further submitted that the show cause notice made no reference to any termination action by the respondent.

7. Lastly, it is submitted that the impugned communication has been passed in utter violation of the principles of natural justice inasmuch as no hearing whatsoever was afforded to the petitioner. This is not refuted by learned counsel for the respondent.

8. The respondent seeks to justify the impugned order on the basis of the statement made by one Mr. Alok Kumar Singh to the UPSTF. The same is, however, vehemently denied by learned senior counsel for the petitioner.

9. Respective counsel for the parties have been heard at some length.

10. It is noticed that communications / letters issued by the NHAI which are similar to the impugned communication in the present case and were issued in an identical factual matrix, have been set aside by this Court *vide* order dated 21.03.2025 in W.P.(C) 3513/2025 and W.P.(C) 3515/2025.

11. In the circumstances, considering the aforementioned discrepancies in the impugned communication, and particularly considering that no opportunity for personal hearing was afforded to the petitioner prior to issuance thereof, the same is clearly unsustainable in law. Accordingly, the impugned communication/s are set aside.

12. However, it is clarified that the same shall not preclude the respondent from issuing a fresh show cause notice, followed by an opportunity of



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hearing to the petitioner, and thereafter pass a speaking order. Let the said exercise be done as expeditiously as possible.

13. With the above directions, the present petition is disposed of. Pending application also stands disposed of.

SACHIN DATTA, J

MARCH 28, 2025/dn



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IN THE HIGH COURT OF DELHI AT NEW DELHI

W.P.(C) 12339/2025

M/S INNOVISION LIMITED

.....Petitioner

Through: Mr. Sumeet Pushkarna (Sr. Adv.)
along with Ms. Meera Chugh, Mr.
Yudhveer Singh, Advs.

versus

NATIONAL HIGHWAY AUTHORITY OF INDIA AND ANR

.....Respondents

Through: Mr. R. Mishra, Mr. Sanjiv Kr.
Saxena, Mr. Mukesh Kr. Tiwari, Ms.
Poonam Shukla, Advs.
Ms. Adya Jha, Ms. Satya Jha, Advs.
for R4

CORAM:

HON'BLE MR. JUSTICE SACHIN DATTA

ORDER

12.09.2025

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CM APPL. 50279/2025 (Interim Relief)

1. The present petition assails a debarment order dated 25.07.2025 passed by the National Highway Authority of India (NHAI)/respondent no. 1, whereby the petitioner has been debarred for a period of one year. The said order further seeks to terminate the contract dated 01.01.2024 entered into between M/s Innovision Limited (herein 'the petitioner') and the respondent no. 1 for *Paschim Madati Fee Plaza at Km 547.350 for use of Dalkhola - Islampur Bypass- Ghoshpukur Section of National Highway 31 in the state of West Bengal* (hereinafter referred to as subject "*Paschim Madati Toll Plaza*").

2. The background of the matter is that on 21.01.2025, the Special Task Force, Uttar Pradesh (STF, U.P.), was intimated regarding fraudulent



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activities being carried out at certain toll plazas operating under the respondent no.1, whereby it was alleged that a parallel software was deployed, resulting in financial loss to the respondent no. 1 *qua* the Government. Pursuant thereto, the STF conducted raids at various toll plazas. However, it is not disputed that no raid was carried out at the toll plaza being operated by the petitioner i.e. Paschim Madati Toll Plaza.

3. During the course of interrogation by the STF, U.P., one of the apprehended individuals, namely Alok Kumar Singh, disclosed the names of 42 toll plazas and allegedly made a statement that a parallel software was being deployed therein, including at 'Paschim Madati Toll Plaza' (operated by the petitioner). An FIR No. 0017 dated 22.01.2025 also came to be registered at P.S. Lalganj, District Mirzapur, U.P.

4. It appears that, in a similar conspectus, debarment orders have been issued by the respondent no. 1/ NHAI *qua* the other entities as well (based on the statement/s made by accused person Alok Singh to the UPSTF). The same are the subject matter of similar writ petitions, which are pending adjudication.

5. However, it transpires that the present matter has one distinguishing feature *vis-a-vis* the other matters where debarment orders have been issued inasmuch as show cause notice dated 23.06.2025 issued to the petitioner makes certain allegations in respect of the 'Sabli Toll Plaza' even though the said toll plaza has never been operated by the petitioner. Thus, the petitioner has been sought to be castigated in respect of allegations *qua* operation of a toll plaza, with which the petitioner has no concern at all. The show cause notice issued to the petitioner, *inter-alia*, reads as under:



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"This has reference to the award of the subject plazas to the toll collection agency/user fee collection agency - Mis. Innovision Ltd., vide LOA dated 21.12.2023 for Paschim Madati Toll Plazas & LOA dated 05.09.2024 for Sabli Toll Plaza. In this regard, the Contract Agreement dated 01.01.2024 for Paschim Madati Toll Plazas & Agreement dated 11.09.2024 for Sabli Toll Plaza ("Contract Agreements") were executed between the National Highways Authority of India ("NHAI" or "Authority") and M/s. Innovision Ltd. ("Contractor").

2. As a result, the Contractor was appointed as the user fee collection agency for the collection of user fees for the above-mentioned toll plazas for collection of User Fees and upkeep/maintenance of adjacent Toilet blocks including recouping the consumable items.

6. A bare reading of the show cause notice leaves no manner of doubt that it is, *inter-alia*, premised on allegations *qua* the 'Sabli Toll Plaza'. The said allegations have been made in conjunction with allegations *qua* the other toll plaza i.e. Paschim Madati Toll Plaza, in respect of which alone the petitioner has a contract with the respondent. It is contended that the show cause notice is completely vitiated inasmuch as it refers to allegations relating to a toll plaza with which the petitioner is not at all concerned. Consequently, it is urged that the resultant debarment order is liable to be set aside/stayed on that ground alone.

7. It is undisputed that the show cause notice is a consolidated one, referring to the allegations *qua* both the toll plazas *viz* the Paschim Madati Toll Plaza and at the Sabli Toll Plaza. The fact that the contract in respect of Sabli Toll Plaza was never awarded to the petitioner has been conceded by the respondent in the counter-affidavit filed on behalf of the respondents. It has been averred therein as under:-

"D. Fraudulent activity at Paschim Madati Toll Plaza is a self-sustaining ground for debarment"

24. By way of the petition, the Petitioner has stated that the consideration of Sabli Toll Plaza (not being operated by the Petitioner during the UP



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STF raid) is a material factual error and demonstrates lack of due diligence on the Respondent's part. It is the Petitioner's contention that it was not managing the Sabli Toll Plaza during the UP STF raid on 22.01.2025.

25. In the Respondent's submission, mere consideration of Sabli Toll Plaza does not vitiate the Impugned Letter. It is a settled principle that if some of the reasons relied upon by an authority for arriving at a conclusion is extraneous, the decision would not be vitiated if the conclusion is based on assessment of objective test. Under Clause 21 of the Contract Agreement, "Any instance of usage of such handheld devices or unauthorized software/system shall be treated as Fraudulent Activity and any User Fee Collection agency(ies), including the Director(s) of such entities or owner, found practicing such fraudulent activities at NH fee plazas will attract penal action as per clause 20 of the contact agreement including debarment from NHAI for a period up to (1) year." Therefore, even a single instance of use of unauthorised system / POS is sufficient for attracting debarment.

26. As such, the fraudulent activity at Paschim Madati Toll Plaza in itself provide an adequate, independent and self-sustaining foundation for the debarment. Therefore, the reference to Sabli Plaza does not vitiate the act of debarment vide the Impugned Letter."

8. Learned senior counsel for the petitioner relies upon the judgment of the Supreme Court in **Commissioner of Central Excise, Bangalore versus M/s Brindavan Beverages (P) Ltd. and Ors., (2007) 5 SCC 388**, wherein it has been observed as under:-

"10. There is no allegation of the respondents being parties to any arrangement. In any event, no material in that regard was placed on record. The show cause notice is the foundation on which the department has to build up its case. If the allegations in the show cause notice are not specific and are on the contrary vague, lack details and/ or unintelligible that is sufficient to hold that the notice was not given proper opportunity to meet the allegations indicated in the show cause notice."

9. The above position has also been reiterated in the judgment of this Court in **Communication World versus Commissioner, Trade and Taxes and Anr., W.P.(C) No.. 2528/2013**. The same inter-alia, reads under:



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“26. It is obvious that the notice dated 4th April 2013 issued under Section 74A (1) of the DVAT Act reproduces the mere words of the above provision without indicating the specific ground on which the Respondent proposes to revise the order dated 9th October 2009. As explained in Commissioner of C. Ex, Bangalore v. Brindavan Beverages (P) Limited (supra), unless the grounds in the show cause notice (SCN) are specified it is not possible for the Assessee to answer such SCN. In the other words, “if allegations in the show cause notice are not specific and are on the contrary vague, lack details and/or unintelligible that is sufficient to hold that the notice was not given proper opportunity to meet the allegations indicated in the show cause notice.””

10. It is evident that there is a fundamental foundational error which vitiates the show cause notice inasmuch as the same *inter-alia*, is predicated on allegations *qua* a toll plaza which the petitioner has no concern. It is undisputed that the allegations in respect of Sabli Toll Plaza, as made in the show cause notice, are wholly irrelevant as regards the proposed debarment of the petitioner. Yet, the show cause notice prominently refers to the said toll plaza and the alleged discrepancies in cash collection therein.

11. *Prima facie*, it is evident that the show cause notice, which constitutes the foundational basis for initiating such debarment action against the petitioner, has been issued without due application of mind (inasmuch as it contains reference to alleged circumstances at a toll plaza with which the petitioner is not concerned at all).

12. Learned counsel for the respondent relies upon the judgment of the Supreme Court in ***Zora Singh versus Shri J.M. Tandon and Others (1971 3 SCC 834)***. The relevant portion of the aforesaid judgment reads as under:

“10. Counsel for the appellant raised the very same contentions before us which were raised before the High Court. As regards the first contention the judgment of the Division Bench clearly holds that in its earlier judgment the High Court did not conclude the question of



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genuineness of the said two copies, and that it remanded the case to the Commissioner only because the Commissioner, while considering the appellant's case, had not called for the record of the Deputy Secretary (Rehabilitation) containing the copies which, according to the appellant, were copies endorsed to him by the Deputy Commissioner, Lyallpur. This is quite clear from the extract from its earlier judgment quoted earlier. There is, therefore, no substance in the first contention. The second contention also was rejected, and in our view rightly. The High Court was right in holding that even if there were, amongst the reasons given by the Commissioner, some which were extraneous, if the rest were relevant and could be considered sufficient, the Commissioner's conclusions would not be vitiated. The principle that if some of the reasons relied on by a Tribunal for its conclusion turn out to be extraneous or otherwise unsustainable its decision would be vitiated, applies to cases in which the conclusion is arrived at not on assessment of objective facts or evidence, but on subjective satisfaction. The reason is that whereas in cases where the decision is based on subjective satisfaction if some of the reasons turn out to be irrelevant or invalid, it would be impossible for a superior court to find out which of the reasons, relevant or irrelevant, valid, or invalid, had brought about such satisfaction. But in a case where the conclusion is based on objective facts and evidence, such a difficulty would not arise. If it is found that there was legal evidence before the Tribunal, even if some of it was irrelevant, a superior court would not interfere if the finding can be sustained on the rest of the evidence. The reason is that in a writ petition for certiorari the superior court does not sit in appeal, but exercises only supervisory jurisdiction, and therefore, does not enter into the question of sufficiency of evidence. There was, in our view, legal evidence before the Commissioner upon which he was entitled to rest his finding that the copies relied on by the appellant were not genuine."

13. The said observations are *prima facie* inapplicable in the facts and circumstances of the present petition. The present case concerns the patent error / lack of foundational basis for the proposed debarment action against the petitioner (as set out in the show cause notice issued to the petitioner). Any infirmity/ irregularity therein cannot be equated with the principles applicable to assessing the justiciability of a quasi-judicial determination



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which contains multiple reasons (only some of which withstand judicial scrutiny). The Supreme Court has time and again reiterated that debarment action is an extremely severe measure, akin to a civil penalty, and any such action must be predicated upon due application of mind and issuance of a valid show cause notice specifically setting out the allegations against the concerned party/entity¹. *Prima facie*, where the show cause notice is predicated (even if partly) on extraneous and irrelevant considerations, the same vitiates the entire exercise. In such a situation, the petitioner cannot be reasonably expected to respond to the allegations which are wholly devoid of any factual legitimacy/ relevance, much less can any debarment action be based thereon.

14. In the circumstances, the petitioner has made out a *prima facie* case for the grant of interim relief. The balance of convenience is also in favour of grant of interim relief in view of the irreparable injury inherently being caused on account thereof. Hence, it is directed that the operation of the impugned order shall remain stayed till the next date of hearing.

15. It is made clear that the above directions are based on a *prima facie* conspectus, and shall be subject to final outcome of the writ petition.

16. The instant application stands disposed of.

17. List the main writ petition for disposal on 30.10.2025.

SACHIN DATTA, J

SEPTEMBER 12, 2025/uk

¹ *UMC Technologies Private Limited vs. Food Corporation of India and Anr.* (2021) 2 SCC 551, *Gorkha Security Services v. Govt. (NCT of Delhi)*, (2014) 9 SCC 105, *Cemond Construction Pvt. Ltd. v. National Power Thermal Corporation Limited*, 2025:DHC:7711.